SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 02/13/2026

ALL APPEARANCES WILL BE BY ZOOM

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Counsel or self-represented parties requesting argument must advise all other affecte counsel and self-represented parties by no later than 4:00 p.m. of his or her decision t appear and of the issues to be argued.

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Zoom hearing information

https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvvmR75t9Q2H5zOgagi9rbG4xeTUM.1
Meeting ID: 161 336 0625
Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02106
CASE NAME: ALALUSI FOUNDATION VS. MALAK TAHSIN
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: TAHSIN, MALAK IBRAHIM
TENTATIVE RULING:*

Before the Court is Defendant Malak Ibrahim Tahsin's Motion for Summary Judgment, or in the Alternative, Summary Adjudication. Plaintiff's complaint alleges a single cause of action for Breach of Contract.

Plaintiff's Request for Judicial Notice of the Complaint in this matter is **granted**. (Evid. Code § 452 (d).)

For the following reasons, the Motion for Summary Judgment is **continued until April 10, 2026**, for additional briefing, as outlined below.

Factual and Procedural Background

This matter pertains to an alleged breach of contract by Defendant. On or about November 2, 2012, Plaintiff entered into a "Contract Agreement and Oath" ("Contract") with Defendant Malak Ibrahim Tahseen (sic) and non-party Ibrahim Tahseen (sic), who is Defendant Tahsin's father. (Malak Tahsin Decl. Ex. A.) [As Ibrahim Tahsin is not a party to this action, references to "Defendant" or "Tahsin" will refer to Malak Tahsin.] At that time, Defendant, an Iraqi national, was living and going to school in Jordan. (*Ibid.*)

The Contract indicated that Plaintiff would provide a loan to Defendant for education related expenses while she was in school. (*Ibid.*) Defendant was to start repaying the loan "after graduation." (*Id.* at ¶ 3, 5.) Specifically, the Contract states:

> After graduation of the [Defendant], he must repay the loan amount in full and in the form of payments, the father of the [Defendant], Mr. Ibrahim Tahseen shall be included with the [Defendant] in this commitment. (*Id.* ¶ 5.)

Defendant graduated from medical school in Jordan on May 7, 2018. (Tahsin Decl., Ex. C.) After graduating, Defendant immediately obtained employment at an obstetrician and gynecologist office in Amman, Jordan. (*Id.* at ¶ 11.) In September of 2018, Defendant was forced to leave Jordan due to the political climate. (¶ 12.) She moved to the United States and lived with her aunt in Texas from October until December 2018 – with a brief visit to Mr. Alalusi's residence in California in between. (¶¶ 13-16.)

In December 2018, she moved to California and rented an apartment attached to Mr. Alalusi's house. (¶ 16, Ex. E.) Defendant's father paid the rent on her behalf. (¶ 17.)

In 2020, Defendant began working for Mr. Alalusi's company – Pressure Grout Company. (¶ 18.) She also began working at Diacarta, where she worked from 2020 to mid-2023. (¶ 18-19.) At no time did Defendant make any payments related to the loan set forth in the Contract.

Plaintiff filed its Complaint for Breach of Contract on October 3, 2022. The Complaint does not attach a copy of the Contract, nor quote any portions thereof. The Complaint alleges, in pertinent part:

> "On or about November 2, 2012, the Plaintiff and the Defendant entered into a written loan agreement ("Contract"). The Contract was negotiated and memorialized in writing in the parties first language, Arabic. (¶10 emphasis added.)

The Complaint alleges that Defendant attended medical school in Amman, Jordan and graduated in June 2018. (¶ 14.) In total, Defendant is alleged to have borrowed $83,225. (*Ibid.*) After the Court overruled Defendant's demurrer to the Complaint, she filed an Answer on March 20, 2023.

Standard

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co*. (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid*.; *see also Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) "In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party." (*Aguilar, supra,* 25 Cal.4th at p. 843 (internal citations and quotations omitted); *see also*, Code of Civ. Proc. §437c(c).)

The pleadings define the scope of Plaintiffs' claims for purposes of a defendant moving for summary judgment. (*Teselle v. McLoughlin, supra,* 173 Cal.App.4th 156, 161 ["'The complaint measures the materiality of the facts tendered in a defendant's challenge to the plaintiff's cause of action.' [Citation omitted.]," quoting *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381].)

Analysis

"The standard elements of a claim for breach of contract are '(1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom.'" (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178, citations omitted.)

Defendant moves for summary judgment based on several arguments: (1) statute of limitations, (2) the statute of frauds, (3) failure to join an indispensable party, and (4, 5) Plaintiff's inability to legally provide private student loans. (Statement of Issues.)

While not listed as a basis for this motion, Defendant also contends, in her Introduction, that the Contract lacks essential terms, including: (1) the total amount of the loan, (2) a repayment schedule or method, (3) identification of the educational institution, (4) notarization or certification by any authority in Jordan, and (5) any reference to Plaintiff's legal authority to issue or service student loans. (MSJ at 7:19-24.)

Before the Court can attempt to address Defendant's stated arguments regarding the validity of

Plaintiff's breach of contract cause of action, there must be an enforceable contract.

Enforceable Contract?

"Under California law, a contract will be enforced if it is sufficiently definite (and this is a question of law) for the court to ascertain the parties' obligations and to determine whether those obligations have been performed or breached." (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 209 quoting *Ersa Grae Corp. v. Fluor Corp.* (1991) 1 Cal.App.4th 613, 623.) "To be enforceable, a promise must be definite enough that a court can determine the scope of the duty[,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages." (*Ibid.* citations omitted.) "Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable." (*Ibid.* citations omitted.)

"The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy." (*Ibid.*) "But '[i]f … a supposed 'contract' does not provide a basis for determining what obligations the parties have agreed to, and hance does not make possible a determination of whether those agreed obligations have been breached, there is no contract." (*Ibid.*)

The Contract at issue here is an alleged loan from Plaintiff to Defendant. "Typically, a contract involving a loan must include the identity of the lender and borrower, the amount of the loan, and the terms for repayment in order to be sufficiently definite." (*Westlands Water Dist. V. All Persons Interested* (2023) 95 Cal.App.5th 98, 127 quoting *Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1174, disapproved on other grounds in *Sheen v. Wells Fargo* Bank, N.A. (2022) 12 Cal.5th 905, 948, fn. 12; see also; *Peterson Dev. Co. v. Torrey Pines Bank,* 233 Cal.App.3d 103, 115 ["The material terms of a loan include the identity of the lender and borrower, the amount of the loan, and the terms for repayment."].)

As noted by Defendant in their Introduction, the Contract at issue does not appear to include (1) the amount at issue, nor (2) the terms for repayment (*i.e.* a repayment schedule or method.) As such, the Contract appears indefinite and unenforceable. This impact the Court's ability to rule on the actual grounds asserted by Defendant, for example the statute of limitations issue. Unless the terms for repayment can be determined, the Court cannot determine when the statute of limitations would begin to run.

Neither party has fully briefed the issue of the existence of valid and enforceable contract in the first instance, since the MSJ was not made on the ground. If the Court wanted to potentially rule on the issue of the existence of an enforceable contract, the case law appears to allow the Court to continue the hearing and provide the opposing party (Plaintiff) time to present additional evidence and authorities on that issue.

> Consistent with the purpose of the summary judgment statute, we conclude that the trial court has the inherent power to grant summary judgment on a ground not explicitly tendered by the moving party when the parties' separate statements of material facts and the evidence in support thereof demonstrate the absence of a triable issue of material fact put in issue by the pleadings and negate the opponent's

claim as a matter of law. (*Cf. Cottle v. Superior Court* (1992) 3 Cal.App.4th 1367, 1377; *Weiss v. Chevron, U.S.A., Inc.* (1988) 204 Cal.App.3d 1094, 1098-1099; *Johnson v. Banducci* (1963) 212 Cal.App.2d 254, 260; *see also Bauguess v. Paine* (1978) 22 Cal.3d 626, 635.)

> **However, when the trial court grants a summary judgment motion on a ground of law not explicitly tendered by the moving party, due process of law requires that the party opposing the motion must be provided an opportunity to respond to the ground of law identified by the court and must be given a chance to show there is a triable issue of fact material to said ground of law**.
>
> Otherwise, a party which could have shown a triable issue of material fact put in issue by the complaint or answer but neglected to do so because the point was not asserted by the moving party as a ground for summary judgment would be deprived unjustly of the chance to demonstrate the existence of a triable issue of material fact which requires the process of trial.

(*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 70-71; *County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 325 citing *Juge* with approval; *Lynch v. Peter & Associates etc.* (2024) 104 Cal.App.5th 1181, 1196 recognizing *Juge*'s viability.)

Conclusion

Based on the above, the Court continues the hearing on Defendant's MSJ to allow for additional briefing on the validity of the Contract. The briefing schedule is as follows:

- Defendant's opening papers – due on or before Friday, March 6. (10 pages max.)
- Plaintiff's opposition papers – due on or before Friday, March 20. (10 pages max.)
- Defendant's reply papers – due on or before Friday, March 27. (5 pages max.)

The hearing is continued until **Friday, April 10, 2026.** The briefing is limited to the existence of a valid and enforceable contract.

2. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 1ST AMENDED COMPLAINT**
FILED BY: MAMPALAM, THOMAS J, MD
****TENTATIVE RULING:****

Defendant Thomas J. Mampalam, M.D. brings a demurrer and motion to strike challenging plaintiff Duncan Mackenzie Miller's First Amended Complaint. The demurrer is **sustained with respect to the first and third causes of action**. The demurrer is **overruled** with respect to the second and fourth causes of action. The motion to strike is **granted with respect to attorneys fees**, as discussed below. Plaintiff has leave to file an amended complaint on or before February 23, 2026.

I. Background

This matter arises from a spinal surgery performed on plaintiff by Dr. Mampalam in 1999 after plaintiff injured his back while working in a restaurant. A few months after the surgery plaintiff began experiencing the same intense back pain that he felt before the surgery. Dr. Mampalam refused to acknowledge the severity of plaintiff's pain and told him the surgery had been a success, the pain was normal, and there was nothing more that could be done. Dr. Mampalam prescribed opioids and later discharged plaintiff as a patient in February 2002. Around the same time, plaintiff began treatment with pain specialist, defendant Kasra Amirdelfan, M.D., who diagnosed plaintiff with Failed Back Surgery Syndrome. Dr. Amirdelfan treated plaintiff for approximately 18 years. Plaintiff eventually consulted with another neurosurgeon who performed spinal fusion surgery in 2022 which resolved the back pain.

Plaintiff alleges defendants knew that plaintiff's spinal pain was due to Failed Back Surgery Syndrome and was not normal, but they never recommended spinal fusion surgery or referred plaintiff for a second opinion, thereby condemning plaintiff to suffer grievous emotional and physical pain for decades.

Plaintiff filed the original verified complaint in December 2022. Dr. Mampalam filed a verified answer on April 25, 2023. After being granted leave to amend, plaintiff filed a verified First Amended Complaint on September 29, 2025, alleging nine causes of action. The first five causes of action are alleged against Dr. Mampalam. They are: (1) Dependent Adult Abuse, (2) Intentional Misrepresentation, (3) Constructive Fraud, (4) Concealment, and (5) Negligence.

After efforts to meet and confer (see Declarations of Faith E. Wolinsky), Dr. Mampalam brought the present general demurrer to the first four causes of action, and a motion to strike allegations as to attorneys' fees, treble damages, and punitive damages. Plaintiff opposes both motions. Plaintiff includes a declaration by counsel with an attached letter, to which defendant objects on reply. The Court sustains the objections and has not considered the declaration for purposes of this ruling because on demurrer, only the allegations and facts subject to judicial notice may be considered.

II. Demurrer

A. Standard

The traditional rule is that "in testing a pleading against a demurrer the facts alleged … are deemed to be true, however improbable they may be." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) All material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318, citations omitted.) The complaint is read as a whole and the parts in their context, considering matters which may be judicially noticed. (*Ibid*.; Code Civ. Proc. § 430.30(a).) Where a demurrer to a complaint is sustained, the burden of proving a reasonable possibility that the defect can be cured through amendment is on the plaintiff. (*Blank, supra*, at 318.)

B. Discussion

1. First C/A for Dependent Adult Abuse

Defendant demurs to the first cause of action based on plaintiff's failure to plead neglect under the Elder Abuse and Dependent Adult Civil Protection Act (Act). The Act provides remedies where a defendant is liable for physical abuse, neglect, or abandonment, and acted with “recklessness, oppression, fraud, or malice in the commission of this abuse.” (Welf. & Inst. Code, §§ 15657; 15610.63 [defining physical abuse], 15610.57 [defining neglect], and 15610.05 [defining abandonment].) Neglect under the Act requires a caretaking or custodial relationship with the plaintiff. (See *Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 152; (Welf. & Inst. Code, § 15610.57.) Defendant argues there was no such relationship with the plaintiff here.

In opposition to the demurrer, plaintiff argues that there was a custodial relationship because plaintiff “relied” on Dr. Mampalam for opioid prescriptions and Dr. Mampalam treated plaintiff for three years.

In pointing to the fact that Dr. Mampalam did not inform plaintiff he could seek spinal fusion surgery, plaintiff cites *Stewart v. Superior Court* (2017) 16 Cal.App.5th 87. In that case, the court held that held elder abuse could potentially be established where a hospital authorized a patient's pacemaker surgery over the patient’s designee's objection and therefore deprived the patient of the right to consent to medical treatment. The facts here are distinguishable. Plaintiff does not assert any treatment imposed upon him without consent.

In the other case cited by plaintiff, *Winn v. Pioneer Medical Group, Inc.*, the heirs of a decedent brought an elder abuse claim against defendants, including a doctor, relating to outpatient care. (*Winn, supra*, 63 Cal.4th at 153.) Plaintiffs alleged that the doctor failed to perform a vascular exam on the decedent despite the doctor's finding that the decedent had peripheral vascular disease. (*Id*.) Over several months of continued out patient visits, the decedent's foot continued to become worse, and he was ultimately admitted to the hospital for gangrene. (*Id*.) Pioneer Medial Group demurred arguing they were not care custodians. The trial court sustained the demurrer on this ground, and the plaintiff appealed.

The appellate court affirmed, noting that the Legislature "did not intend[] the Act to apply whenever a doctor treats any elderly patient. Reading the act in such a manner would radically transform medical malpractice liability relative to the existing scheme." The court further found that that defendants' treatment of the decedent at outpatient "clinics" operated by the defendants was intermittent and did not create a caretaking or custodial relationship between the decedent and the defendants. The court noted there were "[n]o allegations in the complaint support an inference that [decedent] relied on defendants in any way distinct from an able-bodied and fully competent adult's reliance on the advice and care of his or her medical providers." (*Id*.)

The same logic applies in this case. There are no alleged facts that would support a finding that Dr. Mampalam provided ongoing caretaking or custodial care. The alleged care here includes mention of only a handful of encounters over a three year period. This is far less than that in *Winn*.

Plaintiff also argues Dr. Mampalam’s conduct amounted to physical abuse, not just neglect. Plaintiff argues the FAC alleges Dr. Mampalam “caused unjustifiable physical pain by addicting Duncan Miller to opioids when curative surgery was available, subjecting him to years of unnecessary chronic pain and the physical suffering of opioid addiction and withdrawal.”

The Act defines physical abuse in Welfare & Institutions Code, § 15610.63. Subdivision (f) of the statutory definition includes:

> Use of a physical or chemical restraint or psychotropic medication under any of the following conditions:
>
> (1) For punishment.
>
> (2) For a period beyond that for which the medication was ordered

pursuant to the instructions of a physician and surgeon licensed in the State of California, who is providing medical care to the elder or dependent adult at the time the instructions are given.

(3) For any purpose not authorized by the physician and surgeon.

(Welf. & Inst. Code, § 15610.63 (f).)

Nothing amounting to the above is alleged here against Dr. Mampalam. While plaintiff makes allegations that might arguably come within this definition against Dr. Mampalam's codefendant (see, e.g., FAC, ¶93), the facts as to Dr. Mampalam are merely that he prescribed opioids. (See, e.g., FAC, ¶¶19, 41, 43.)

As such, a dependent adult abuse claim must fail, and the Court sustains the demurrer to the First Cause of Action, with leave to amend.

2. Timeliness of the Fraud Causes of Action

Though not explicitly addressed by either side, a demurrer "will lie where the complaint has included allegations that clearly disclose some defense or bar to recovery." (*Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191.)

Accordingly, the Court finds it necessary to engage with the timing of plaintiff's claims here. Code of Civil Procedure, § 340.5 provides the statute of limitations for medical negligence claims, which "shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." The timeframe during which a plaintiff may commence the action shall not exceed three years "unless tolled for any of the following: (1) upon proof of fraud, (2) intentional concealment, or (3) the presence of a foreign body […]."

The current version of this section was enacted in 1975 as part of the Medical Injury Compensation Reform Act ("MICRA"). (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 974.) MICRA is an "interrelated legislative scheme enacted to deal specifically with all medical malpractice claims." (*Ibid*., citing *Young v. Haines* (1986) 41 Cal. 3d 883, 894.) Presumably, the legislative goal in amending § 340.5 [to reduce the maximum limitations period from four to three years] was to give insurers greater certainty about their liability for any given period of coverage, so that premiums could be set to cover costs." (*Guardian North Bay, Inc., supra,* 94 Cal.App.4th at 974, citing *Young, supra,* 41 Cal. 3d 883, 900.) No tolling provision outside of MICRA can extend the three-year maximum time period that § 340.5 establishes. (*Belton v. Bowers Ambulance Serv.* (1999) 20 Cal.4th 928, 931.)

Keeping in mind this framework, the Court proceeds to the individual causes of action.

3. Second C/A for Intentional Misrepresentation

Dr. Mampalam demurs to plaintiff's intentional misrepresentation cause of action on the basis that it is conclusory and not pleaded with particularity. In California, fraud must be pled specifically; general and conclusory allegations do not suffice. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The policy of liberal construction of the pleadings will therefore not ordinarily be invoked with respect to fraud. (*Ibid*.) This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.' (*Ibid*.)

To plead fraud, plaintiff must state (1) a misrepresentation; (2) knowledge of falsity (or 'scienter'); (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Engalla v. Permanente Medical Group, Inc*. (1997) 15 Cal.4th 951, 974, internal quotation marks omitted; see also Civ. Code, §§ 1709-1710.) "[F]alse representations made recklessly and without regard for their truth in order to induce action by another are the equivalent of misrepresentations knowingly and intentionally uttered." (*Engalla, supra*, 15 Cal.4th at 974.)

According to the FAC, Dr. Mampalam falsely represented that the surgery he performed had been successful and that plaintiff's pain was "normal," knowing the representations "were false at the time that he made them or that he made these representations recklessly and without regard for their truth." (FAC, ¶32.) Plaintiff also alleges that Dr. Mampalam "intended" for plaintiff to rely on his misrepresentations, and that plaintiff did rely on them. (FAC, ¶¶33, 35.) With respect to specificity, the opposition points out that the FAC states who made the representation (Dr. Mampalam), to whom (plaintiff), what was represented (that the surgery was a success, plaintiff's pain was normal, and was actually Failed Back Surgery Syndrome), and when the misrepresentations were made (June 3, 1999, February 25, 2002, and during each consultation over the three-year treatment period). (See FAC ¶¶18, 20, 32, 51, and 54.)

This is sufficient at the pleading stage. The demurrer to the second cause of action is overruled.

4. Third C/A for Constructive Fraud

Dr. Mampalam demurs to plaintiff's constructive fraud cause of action on the basis that plaintiff should not be permitted to circumvent MICRA by avoiding the actual cause of action which is medical negligence, and because defendant asserts no California court has recognized a cause of action for constructive fraud arising in similar circumstances.

One court discussed constructive fraud as one and the same cause of action as a "breach of fiduciary duty," noting that pursuant to this theory, representation and falsity are absent. This is because "[t]he fraud consists of the breach of the fiduciary duty of disclosure of relevant matters arising from the relationship, and this must be alleged." (*Byrum v. Brand* (1990) 219 Cal.App.3d 926, 937-938.)

As constructive fraud is more lenient than fraud, and in this case, at least, duplicates one for medical negligence under MICRA, the cause of action would not, like actual fraud, function to toll the limitations period of Code of Civil Procedure, § 340.5. The Court declines to further speculate as to whether ALL causes of action for constructive fraud duplicate a medical negligence cause of action. Here, we need only determine that there was no tolling of the statute of limitations. Plaintiff's allegedly unsuccessful surgery was in 1999. He ceased being a patient of Dr. Mampalam on February 25, 2002.

The general rule for accrual of a cause of action is when the cause of action is complete with all of its elements. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397, citations omitted.) Absent tolling, the statute of limitations for medical negligence is not more than three years, as mentioned above. The statute of limitations for constructive fraud is three years. (*City of Vista v. Robert Thomas Sec.* (2000) 84 Cal.App.4th 882, 889, citing Code Civ. Proc., § 338 (d) [statute of limitations for fraud].)

Here, at the time plaintiff brought this action (December 2022) more than 20 years had elapsed from the time of harm. Surgery was in January 1999, plaintiff's pain commenced no later than June 1999, and Dr. Mampalam made any representations no later than February 2002. Where the statute of limitations poses a bar on the face of the complaint, as here, plaintiff must allege facts that would get around that bar. Plaintiff has failed to do so with respect to the constructive fraud / medical negligence (which are equivalent here). The demurrer to this cause of action is sustained with leave to amend.

5. Fourth C/A for Concealment

Dr. Mampalam demurs to plaintiff's concealment cause of action on the basis that it is not sufficiently specific.

The elements of fraud by concealment are: (1) defendant's concealment or suppression of a material fact; (2) defendant was under a duty to disclose the fact to the plaintiff; (3) defendant intentionally concealed or suppressed the fact with the intent to defraud plaintiff; (4) plaintiff was unaware of the fact and would not have acted as plaintiff did had plaintiff known of the concealed or suppressed fact; and (5) plaintiff was damaged as a result of the concealment or suppression. (*Knutson v. Foster* (2018) 25 Cal.App.5th 1075, 1091.)

Despite the general requirements regarding pleading fraud with specificity, the Court notes that in concealment claims, less particularity is required. This is because the facts presumably lie within the knowledge of the defendant. This principle is applicable here. From the nature of the allegations, and assuming their truth as we must on demurrer, Dr. Mampalam would necessarily possess full information concerning the facts. (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384, citations omitted.)

Plaintiff alleges Dr. Mampalam intentionally failed to disclose (1) that plaintiff's back pain was not normal and was actually Failed Back Surgery Syndrome, (2) that plaintiff's pain was not normal, and (3) that spinal fusion was available. (FAC, ¶¶51-54.) Plaintiff has alleged that the concealment was done with the intent to deceive plaintiff, and that plaintiff could not know the real facts because he had no formal medical training. (FAC ¶¶53, 55-56.) Plaintiff further pleads reliance and harm in that he would have acted differently with respect to his treatment if he had known the true facts. (FAC ¶¶57-58.)

This is sufficient. The demurrer to the fourth cause of action is overruled.

III. Motion to Strike

A. Standard

The Court may, in its discretion and upon a motion to strike by defendant: (a) strike out any irrelevant, false, or improper matter inserted in any pleading, or (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., §§ 435-436.) The matter must appear on the face of the complaint or be subject to judicial notice. (Code Civ. Proc., § 437.)

B. Discussion

1.*Damages Based on Dependent Adult Abuse*

To the extent items of damages are related to the first cause of action, the demurrer to that cause of action was sustained and therefore, the motion to strike these items is denied as moot. (See Items 2 and 9 in the Notice of Motion relating to "Treble Damages").

2.*Punitive Damages*

The motion is denied with respect to the punitive / exemplary damages allegations listed in the Notice of Motion. The plaintiff successfully alleges fraud, which is one of the statutory bases for punitive / exemplary damages. (Civ. Code, § 3294 (a) [“where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant”].)

3.*Attorneys’ Fees*

The motion is granted with respect to the attorneys’ fees allegations listed in the Notice of Motion. There is no contract here and no successfully asserted statutory claim here that would entitle plaintiff to his attorneys’ fees.

3. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MAMPALAM, THOMAS J, MD
TENTATIVE RULING:

Please see Line 2.

4. 9:00 AM CASE NUMBER: C23-02087
CASE NAME: JOHN BROSNAN VS. GEICO INDEMNITY COMPANY
***HEARING ON MOTION IN RE: RENTAL VEHICLE**
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by plaintiff John Brosnan for a rental vehicle. For the reasons set forth, the motion is **denied**.

Background

Plaintiff filed his complaint initiating this action on August 22, 2023. His complaint alleged his claims arose out of a motor vehicle accident that allegedly occurred on August 3, 2022 in which the other vehicle involved in the accident was insured by defendant Geico Indemnity Company. (Compl. 1st and 2nd C/As.) Geico demurred to the Complaint on the ground Plaintiff had no direct claim against Geico. The Court sustained Geico's unopposed demurrer without leave to amend. (2/23/2024 Order.) On October 21, 2024, defendant Garcia filed a demurrer to the Complaint which was set for hearing on February 21, 2025. The Court sustained Garcia's demurrer without leave to amend on statute of limitations grounds. (Min. Order 2/21/2025.)

On November 4, 2025, Plaintiff filed the current motion for a rental vehicle. Garcia filed an opposition to the motion.

Legal Authority and Analysis

Garcia argues the motion should be denied in part because demurrers to Plaintiff's complaint were sustained as to both named defendants. Garcia's recent *ex parte* application for an order dismissing the action under Code of Civil Procedure section 581 was denied on the grounds stated in the order.

(2/6/2026 Order.) The action remains pending.

As to the specific motion before the Court, the motion consists of a single page of substantive allegations and argument, unsupported by any legal authority or evidence, pursuant to which Plaintiff asks the Court to order defendant Garcia to provide him a rental vehicle until his car is repaired. A motion is required to be supported, at a minimum, by a memorandum of points and authorities providing the Court with the legal authority on which it is brought and the legal basis on which the relief sought can be granted. (Cal. R. Ct., Rule 3.1112(a) and (b), and Rule 3.1113(a) ["A party filing a motion . . . must serve and file a supporting memorandum."] and (b) ["The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced."].)

The motion is not supported by a Rule-compliant memorandum, legal authority or evidence. Plaintiff is not excused from compliance with applicable law, procedures, and rules merely because he is a self-represented litigant. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.) Plaintiff has presented no legal or factual basis for the Court to grant the substantive relief requested by showing that either defendant is legally obligated to provide Plaintiff a rental vehicle. For all these reasons, the motion is **denied.**

5. 9:00 AM CASE NUMBER: C24-01630
CASE NAME: ROBERT MILLER VS. SOPHIE HAN
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: MILLER, ROBERT A.
TENTATIVE RULING:

Before the Court is a motion for summary judgment, or in the alternative, summary adjudication, filed by plaintiff Richard Miller. For the reasons set forth, the Court rules as follows: (a) motion for summary judgment - **denied**; (b) motion for summary adjudication as to the First Cause of Action for Breach of Contract is – **granted**, and Plaintiff shall be granted judgment in the amount of $132,282.32 plus attorney's fees and pre-judgment interest thereon at the rate of 10% per annum from April 18, 2022 until the date of entry of judgment; and (c) motion for summary adjudication as to the Second Cause of Action for Common Count: Account Stated - **denied**.

Background

Plaintiff Richard Miller alleges he is an attorney who represented defendant Sophie Han pursuant to a written Agreement for Legal Services ("Agreement"). (Compl. 1st C/A ¶¶ BC-1 and BC-2 and Exh. A.) The Agreement provides for Miller to represent Han and SS Dreambuilders, LLC in two civil actions identified in the Agreement. (Compl. Exh. A.) He alleges that on or about April 18, 2022, Han breached her agreement with Miller by failing to pay $132,282.32 owed for his legal services. (Compl. ¶¶ 9, 10 and 1st C/A BC-4.) Miller alleges pre-litigation he served Han with a Notice of Client's Right to Fee Arbitration, a copy of which is also attached to the Complaint. (Compl. ¶ 9.) The Complaint alleges a cause of action for breach of contract (1st C/A) and a common count for account stated (2nd C/A). Miller seeks damages in the amount of $132,282.32, plus pre-judgment interest at the rate of 10% and attorneys' fees and costs incurred in this action.

Han filed an answer to the Complaint. Miller has moved for summary judgment, or in the alternative, summary adjudication. Han has not responded to or opposed the motion. On February 5, 2026, Plaintiff filed and served a notice of non-opposition to the motion.

Legal Standards for Ruling on Plaintiff's Motion for Summary Judgment

Under Code of Civil Procedure section 437c(c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The issues to be considered on a motion for summary judgment are defined by the pleadings. (*Doe v. Good Samaritan Hospital* (2018) 23 Cal.App.5th 653, 661; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 161.)

A plaintiff as the moving party does not need to disprove the defendant's defenses and meets its burden of showing there is no defense to the claim if it proves each element of the cause of action that would entitle plaintiff to judgment on that cause of action in its favor. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849, 853; *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241; Code Civ. Proc. § 437c(p)(1).) "A plaintiff or cross-complainant has met that party's burden of showing that there is no defense to a cause of action <u>if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant</u> or cross-defendant <u>to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant</u> or cross-defendant <u>shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists</u> but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. (Code Civ. Proc. § 437c(p)(1) [emphasis added].)

Motions for summary adjudication under Code of Civil Procedure section 437c(f)(1) "are 'procedurally identical' to summary judgment motions.' [Citation.]" (*Duffey v. Tender Heart Home Care Agency, LLC* (2019) 31 Cal.App.5th 232, 240-241.) A motion for summary adjudication under Code of Civil Procedure section 437c(f)(1) can only be granted "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc. § 437c(f)(1).) (*See also Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

Even though unopposed, the Court independently reviews a motion for summary judgment to determine whether the motion demonstrates by admissible evidence that there is no triable issue of material fact, and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc. § 437c(c); *Duffey, supra,* 31 Cal.App.5th at 241.)

Summary of the Motion and Supporting Evidence

Plaintiff filed a Separate Statement ("SS") of Undisputed Material Facts ("UMFs") which lists four issues, including UMFs in support of Plaintiff's right to summary adjudication of the first cause of action (Issue 1, UMF Nos. 1-14), the second cause of action (Issue 2, UMF Nos. 15-18), the insufficiency of Han's answer and affirmative defenses (Issue 3, UMF No. 19), and Plaintiff's right to interest on the outstanding balance due under the Agreement from April 18, 2022 at 10% per annum (Issue 4, UMF No. 20).

The motion is supported by the declarations of Miller and his counsel Bryan, who attests to her calculation of the interest on the unpaid balance under the Agreement at the 10% interest rate provided in the Agreement. (Bryan Decl. ¶ 3; Miller Decl. ¶ 3 and Exh. 1 [Agreement ¶ 8].) The motion is also supported by Plaintiff's request for judicial notice, pursuant to which Plaintiff requests the Court take judicial notice of the Court's August 15, 2025 Minute Order deeming admitted the requests for admissions subject to Plaintiff's motion to compel discovery responses, a notice of entry of the August 15, 2025 Minute Order showing service on Han, and the Complaint and Han's answer. (Pl. RJN Exhs. 1-4.) The Court **grants** the request for judicial notice, subject to the limitations on the scope of judicial notice under the case law. (Evid. Code § 452(d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or interpretation of pleadings to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp*. (2007) 148 Cal.App.4th 97, 113-115 [same]; *Sosinsky v. Grant* (1992) 6 Cal. App. 4th 1548, 1569 [judicial notice of prior order or judgment].)

Miller's SS and supporting evidence shows that he entered into the Agreement with Han for legal services, that he performed legal services for her, that Miller sent monthly statements to Han during the course of his representation, that she breached the Agreement on or about April 18, 2022 by failing to pay the fees agreed to, that Miller provided a Notice of Client's Right to Arbitrate with a copy of the fee statement showing the amount owed of $132,282.32, and that she has failed to pay the amount due despite demand. (Miller Decl. ¶¶ 3-9 and Exhs. 1 and 2.) The supporting evidence also includes a copy of the requests for admissions to which Han failed to respond and as to which the Court, on Plaintiff's motion, issued an order deeming the requests admitted. (UMF Nos. 10, 12-14 and supporting evidence.) Han is deemed to have admitted the genuineness of the copy of the Agreement governing Miller's legal services rendered to her, the fact that Han owes Miller $132,282.32 in attorneys' fees and costs, and that she owes interest on that amount at the rate of 10% per year from April 18, 2022. (Miller Decl. ¶¶ 10-14 and Exhs. 3-5; RJN Exhs. 1 and 2.)

Analysis

A. Issue 1: First Cause of Action for Breach of Contract

The essential elements of a cause of action for breach of contract are "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. [Citations omitted.] " (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) Plaintiff has proven each of the elements of his claim for breach of contract, and Plaintiff has therefore met his initial burden of demonstrating he is entitled to summary adjudication of that cause of action based on that proof without having to disprove any affirmative defenses asserts by Han in her answer. (*Aguilar, supra,* 25 Cal.4th at 849, 853; *Paramount Petroleum Corp., supra,* 227 Cal.App.4th at 241; Code Civ. Proc. § 437c(p)(1).) Summary adjudication of this cause of action also includes the right to recover attorneys' fees incurred by Plaintiff in this action. (UMF Nos. 7, 11.) The Court therefore **grants** Plaintiff's motion for summary adjudication as to Issue 1.

B. Issue 4: Prejudgment Interest

Plaintiff also moves for summary adjudication of his claim for recovery of "interest" on the unpaid balance due under the Agreement based on the terms of the Agreement in Issue 4. (UMF No. 20.) A claim for damages can be the subject of summary adjudication. (Code Civ. Proc. § 437c(f).) The Agreement does not provide for "interest" on the unpaid balance but rather for imposition of "a late fee of .08333 percent of the outstanding balance per month to be charged to the client. THE ANNUAL PERCENTAGE RATE OF THE LATE CHARGE FOR BILLS NOT PAID IS TEN PERCENT (10%)." (Miller Decl. Exh. 1 [Agreement ¶ 8].)

Nevertheless, consistent with the Complaint, the Miller Declaration specifically requests prejudgment "interest" at 10% per annum on the outstanding contract balance as does Miller's declaration (Compl. ¶ 10.b.; Miller Decl. ¶ 8), and Plaintiff cites Civil Code § 3287 in support of the request for prejudgment interest. (MPA ISO Mot. pp. 9-10; Civ. Code § 3287(a) ["A person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day, except when the debtor is prevented by law, or by the act of the creditor from paying the debt."].) (*See also Howard v. American National Fire Ins. Co.* (2010) 187 Cal. App. 4th 498, 538 [unless specified by a contract, prejudgment interest rate on breach of contract made after January 1, 1986 is 10 percent pursuant to California Constitution, Article XV, section 1 and Civil Code § 3289(b)].) The Court therefore **grants** Plaintiff's motion for summary adjudication for prejudgment interest at the rate of 10 percent per annum from April 18, 2022 on the balance of $132,282.32 due under the Agreement.

C. Issue 2: Second Cause of Action Common Count / Account Stated

While it is true that if there is a breach of written contract cause of action, the plaintiff "may plead inconsistent causes of action for breach of contract and common count" (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2016) 6 Cal.App.5th 1207, 1223), generally, under California law, a debt based upon the breach of the terms of an express contract cannot be the basis of an account stated. (*Moore v. Bartholomae Corp.* (1945), 69 Cal. App. 2d 474, 477 ["The law is established in California that a debt which is predicated upon the breach of the terms of an express contract cannot be the basis of an account stated."].) (*See also Professional Collection Consultants v. Lauron* (2017) 8 Cal.App.5th 958, 968 [citing general rule].) Having proven the existence of the written contract, the debt outstanding under that contract, and damages in Issues 1 and 4, the Court denies the motion for summary adjudication of the Second Cause of Action on this ground.

D. Issue 3: The Affirmative Defenses pled in the Defendant's Answer

Both the summary judgment statute quoted above and the California Supreme Court's decision in *Aguilar, supra,* 25 Cal.4th 826 are clear that a plaintiff moving for summary judgment or summary adjudication need not negate defenses asserted by the defendant in the answer to meet the plaintiff's initial burden of demonstrating the plaintiff is entitled to summary judgment or summary adjudication. The plaintiff only needs to demonstrate there are no triable issues of material fact as to each of the essential elements of plaintiff's cause of action, which Miller has done in connection with Issue 1 and the first cause of action of the Complaint for breach of contract. Issue 3 is thus immaterial to the Court's granting summary adjudication of the first cause of action.

Procedural Note on Motion

Plaintiff's notice of motion and motion lists the four issues subject to the motion for summary adjudication and states that the issues are repeated verbatim in the SS pursuant to California Rule of Court, Rule 1350(b). They are not. The court has labeled the arguments in this opinion to clarify the issues discussed in each section.

6. 9:00 AM CASE NUMBER: C24-01666
CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING IN RE: MOTIN TO COMPEL
FILED BY:
TENTATIVE RULING:

Plaintiff Niraj Gandhi moves to Compel Further Responses to Special Interrogatories (Set One), and for Monetary, Issue and Evidence Sanctions against Defendant San Ramon Regional Medical Center. The motion is **denied**.

Factual Background

Plaintiff does not include a description of the factual allegations in the lawsuit to give context to the relevance of the discovery sought. The Court draws upon the factual background from the Opposition papers. This action arises out of an allegation that defendant lost catheterization images of Plaintiff and knowingly concealed that from him.

Discussion

The motion is procedurally deficient. Plaintiff has failed to comply with California Rules of Court, Rule 3.1345(c). Rule 3.1345(c) requires that Plaintiff's Separate Statement in support of his motion include "[t]he text of the request, interrogatory, question, or inspection demand," "[t]he text of each response, answer, or objection, and any further responses or answers" and "[i]f necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it." (Rule of Ct, 3.1345(c)(1)-(2). The court may deny the motion on the basis that the Separate Statement did not comply with Rule 3.1345(c).

Plaintiffs' Separate Statement fails to include the entirety of the interrogatories in question and the entirety of Defendant's responses to the interrogatories in question. In addition, the Separate Statement fails to include the definitions that Plaintiff outlined in the beginning of his interrogatories to define terms including, but not limited to "INCIDENT," "MANAGEMENT," KEY DECISION MAKER." Plaintiff specifically cherry picked portions of the interrogatories and Defendant's responses to provide to the Court in his Separate Statement. The court finds that Plaintiff's failure to comply with the Rules of Court is without justification. This is one reason the motion to compel is denied.

The court also finds no basis for concluding that Defendant has willfully or in bad faith obstructed discovery. Plaintiff's assertions that Defendant did not perform a reasonable investigation is sheer speculation and not supported by evidence. Plaintiff also writes as if the instant motion was for compelling further responses to Requests for Admission, which it is not. Plaintiff's accusations of "proven bad faith" are baseless and unsupported by any record. The Court finds that the middle finger comment was in the context of what Defendant might recover at the end of the case, not in a statement defining what would or would not be produced in discovery.

Order

The motion to compel further responses is denied.

Defendant is correct in that a self-represented litigant cannot recover attorney's fees as a discovery sanction. (*Kravitz v. Superior Court* (2001) 91 Cal.App.4th 1015, 1017; see also *Aragman v. Ratan* (1999) 73 Cal.App.4th 1173.) Plaintiff has not shown that he incurred any attorney's fees in bringing this motion.

A second and independent reason for denying Plaintiff's motion for sanctions is that his motion to compel further responses is denied.

A third reason for denying the request for sanctions of any kind is that the Plaintiff has not shown that Defendant has participated in or promoted unusual or egregious discovery abuse. The actions Plaintiffs contend constitute a misuse of discovery: filing a motion to strike punitive damages, and asserting objections to interrogatories, do not constitute discovery abuse. Plaintiff has not made the requisite showing for issue sanctions.

7. 9:00 AM CASE NUMBER: C24-01886
CASE NAME: ALEXANDER REYNOLDS VS. HYUNDAI MOTOR AMERICA
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
<u>*TENTATIVE RULING*</u>

The unopposed motion of Christopher J.H. Im to be relieved as counsel for Plaintiff Alexander Reynolds, filed October 21, 2025, is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

Plaintiff's Counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating the reasons for withdrawal.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record.

The court will revise and sign the submitted order (Judicial Council Form MC-053) with the correction that the next hearing date is a Further Case Management Conference in Dept. 32 at the Wakefield Taylor Courthouse, 725 Court Street, Martinez, CA 94553 on June 9, 2026 at 8:30 am. The court will email the revised order to Counsel Im.

The withdrawal is effective upon Counsel Im's filing the proof of service of the signed order on the client and all parties.

8. 9:00 AM CASE NUMBER: C24-02719
CASE NAME: H. LAYTON VS. FARIDEH ERICKSON
***HEARING ON MOTION IN RE: TO SUBSTITUTE ATTORNEY**
FILED BY: LAYTON, H. F.
****TENTATIVE RULING:****

This unopposed motion will be dropped from calendar as moot because a substitution of attorney was filed January 6, 2026.

9. 9:00 AM CASE NUMBER: C25-00222
CASE NAME: JEANETTE JOHNSTON VS. RORE MANUFACTURING, INC., FKA RORE MANAGEMENT, INC.
HEARING ON DEMURRER TO: TO THE FIRST, SECOND, FOURTH, FIFTH, SIXTH, AND SEVENTH CAUSES OF ACTION OF PLAINTIFFS' FIRST AMENDED COMPLAINT
FILED BY: RORE MANUFACTURING, INC., FKA RORE MANAGEMENT, INC.
****TENTATIVE RULING:****

Vacated.

10. 9:00 AM CASE NUMBER: C25-00222
CASE NAME: JEANETTE JOHNSTON VS. RORE MANUFACTURING, INC., FKA RORE MANAGEMENT, INC.
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFFS' FIRST AMENDED COMPLAINT**
FILED BY: RORE MANUFACTURING, INC., FKA RORE MANAGEMENT, INC.
****TENTATIVE RULING:****

Vacated.

11. 9:00 AM CASE NUMBER: C25-01036
CASE NAME: DAN CARRILLO VS. CHRISTOPHER BEGG
***HEARING ON MOTION IN RE: CONTEST APPLICATION FOR GOOD FAITH SETTLEMENT FILED BY: BEGG, CHRISTOPHER**
FILED BY:
****TENTATIVE RULING:****

Before the Court is a motion by defendant and cross-complainant CBC General Contractors Inc. to contest an application for good faith settlement determination ("motion") and the application for good faith settlement determination ("Application") filed by plaintiffs Dan Carillo and Emily Elliott, and cross-defendant Blaine Mervin Munsch dba Willow Creek Construction ("Applicants") for a good faith settlement determination. For the reasons set forth, the motion contesting the application for good faith settlement determination is denied in part, and the Application is **granted in part**. Pursuant to Code of Civil Procedure §§ 877 and 877.6, the Court finds the settlement between

Plaintiffs and Willow Creek is a good faith settlement under the standards of *Tech-Bilt*, as set forth below. To the extent the Application seeks a dismissal of CBC's express contractual indemnity cause of action in its cross-complaint against Willow Creek or a determination that CBC's express contractual indemnity cause of action is barred by the Court's good faith settlement determination under Code of Civil Procedure §§ 877 and 877.6, that relief is **denied**, and the Court grants the motion to the extent it asks the Court to exclude CBC's express contractual indemnity claim from any determination or bar based on the Application and the good faith settlement determination.

Background

Plaintiffs Dan Carillo and Emily Elliott allege they entered into a written contract with defendant and cross-defendant CBC General Contractors Inc. to perform a remodel of their residence in Lafayette (the "Project"). They allege three causes of action, including breach of contract based on CBC's failure to complete the construction by the contractual deadline, negligence in the performance of the construction, and alter ego against CBC's principals, defendants Christopher Begg and Karen Begg.

On May 27, 2025, CBC answered and filed a cross-complaint against the Plaintiffs and three subcontractors, Blaine Mervin Munsch dba Willow Creek Construction ("Willow Creek"), Michael Charles Soberanes dba Micor Electric ("Micor"), and Bay Valley Sheet Metal, Inc. CBC's cross-complaint alleged a claim against Plaintiffs for breach of the construction contract, but CBC subsequently dismissed Carillo and Elliott as cross-defendants. CBC's cross-complaint also asserts causes of action against the subcontractors Willow Creek, Micor, and Bay Valley for express contractual indemnity, and equitable indemnity, apportionment of fault and contribution and declaratory relief.

Prior to commencement of this action, in February 2025, Plaintiffs entered into a settlement with Willow Creek pursuant to which Willow Creek agreed to pay Plaintiffs $85,000, among other terms, and in August 2025, Plaintiffs and Willow Creek made an application for good faith settlement determination. CBC filed a timely motion to contest the application for good faith settlement.

Procedures and Standards Governing Good Faith Settlement Determination

There are two alternative procedures under Code of Civil Procedure § 877.6 for obtaining a determination that a settlement is a good faith settlement. Applicants chose the procedure by which they filed an application for a good faith settlement determination without setting a hearing, which the Court may grant unless a motion contesting the good faith settlement is timely made. (Code Civ. Proc. § 877.6(a)(2).) CBC timely filed a motion contesting the Application.

The California Supreme Court in *Tech-Bilt, Inc. v. Woodward-Clyde & Associates, supra,* 38 Cal.3d 488 ("*Tech-Bilt*") listed a series of factors courts should consider in making the determination of good faith under Code of Civil Procedure § 877.6. These factors include "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants." (*Id.* at 499.) The settlement lacks good faith if the settlement is " 'grossly disproportionate to what a reasonable person at the time of settlement would estimate the settling defendant's liability to be.' [Citation omitted.]" (*Id.* [quoting *Torres v. Union Pacific R.R. Co.* (1984) 157 Cal.App.3d 499, 509].)

That a settlement calls for the settling party to pay less that the party's theoretical proportionate share of the plaintiff's damages does not mean the settlement is made bad faith; a good faith settlement does not require " 'perfect or even nearly perfect apportionment of liability.' [Citation omitted.] All that is necessary is that there be a 'rough approximation' between a settling tortfeasor's offer of settlement and his proportionate liability. [Citation omitted.]" (*North County Contractor's Assn., supra,* 27 Cal.App.4th at 1090-1091.) In assessing the value of the settlement to the settling party and whether the settlement was reached in good faith, "a trial court must examine not only the settling tortfeasor's potential liability to the plaintiff, but also the settling tortfeasor's potential liability to all nonsettling tortfeasors. [Citations omitted.]" (*PacifiCare of California v. Bright Medical Associates, Inc.* (2011) 198 Cal.App.4th 1451, 1465-1466; *TSI Seismic Tenant Space, Inc. v. Superior Court* (2007) 149 Cal.App.4th 159, 166.)

<u>Applicants' Request for Judicial Notice</u>

Applicants ask the Court to take judicial notice of the summons and cross-complaint filed by CBC. They assert the documents show "only two added subcontractors." (Pl. RJN ¶ 1.) The Court can take judicial notice of its records filed in the case, and the unopposed request is **granted** to the extent that the Court takes judicial notice that these documents are filed with the Court, but not Applicants' characterization of the content of the documents. (Evid. Code § 452(d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice of pleadings extends to the fact of the filings but not the truth or interpretation of the content of the filings to the extent reasonably disputable].)

<u>CBC's Reply, Applicants' "Sur Opposition," and Supplemental Briefing</u>

CBC's motion was originally set for hearing on January 9, 2026. On December 30, 2025, CBC filed a reply and declaration by counsel with copies of discovery responses served by Plaintiffs after CBC filed its motion. Applicants' "sur opposition" filed the same date objected to the Court considering what they characterized as "new" evidence presented for the first time with the reply. The Court discussed that CBC's motion raised the significance of the substance of the discovery to the motion and Plaintiffs' delay in providing discovery responses he information based on Plaintiffs' request for an extension of time to respond. (1/9/2026 Min. Order.) Nevertheless, based on Applicants' objection and claim of prejudice, the Court continued the hearing to this date and provided Plaintiffs an opportunity to file a supplemental opposition "addressed to the evidence filed with CBC's reply." (*Id.*) The Court also asked that the supplemental briefing address and clarify "Applicants' position that the Willow Creek settlement resolves construction defects related to 'framing' although the Willow Creek subcontract encompassed both framing and foundation work." (*Id.*)

Applicants filed a supplemental brief and a declaration by counsel attaching a certified copy of Contractors State License Board records regarding CBC and its principal Christopher Begg. Applicants have added new evidence outside the scope of the supplemental briefing requested by the Court which they contend shows CBC, a corporation which was the party and signatory to the construction contract with Plaintiffs dated December 31, 2021, was not licensed as a general contractor until February 3, 2023 when Christopher Begg's sole owner entity license was reassigned to CBC. (Compl. Exh. 1; Suppl. Kelly Decl. Exh. 4.)

Applicants' new supplemental evidence does not respond to the substance of the reply evidence regarding Plaintiffs' itemization of damages and defects, and CBC objects to the evidence as hearsay in its supplemental reply. For the reasons explained below, the Court does not find the licensing information material to the determination of the motion. The Court will address the substance of the supplemental pleadings in the *Tech-Bilt* analysis.

Analysis

The Application and motion contesting the good faith settlement show that Willow Creek was the subcontractor engaged to perform the framing and foundation work on the Project. Under the Willow Creek settlement, Plaintiffs agreed to accept the settlement payment of $85,000 in resolution of any claims they may have had against Willow Creek related to the Project. (App. Exh. A [Stlmt. Agmt. ¶ 1].) The Plaintiffs also agreed to indemnify, defend and hold Willow Creek harmless from any claims of others, including claims by CBC, arising out of the Project, and including claims for express contractual indemnity by CBC against Willow Creek. (App. Exh. A [Stlmt. Agmt. ¶ 2].)

Applicants assert in the Application that "All of the work associated with Willow as a subcontractor are totally resolved and any claims of the Carrillo's as against CBC <u>related to framing</u> are gone; there is a credit to CBC." (App. p. 5, ll. 7-9 [emphasis added].) (*See also* App. p. 3, ¶ 3 ["The terms and amount of settlement regarding Willow are based upon successful attempts to negotiate the disputed amount of <u>damages associated with Willow's scope of work related to framing</u> by and through Mr. Kelly and Ms. Shambaugh for their respective clients [Verif. Kelly]." (Emphasis added.)].) The Applicants recognize that Willow Creek has an express contractual indemnity obligation to CBC for claims "arising out of or resulting from" Willow Creek's performance of the work under its subcontract, "provided that" the claims are "attributable to" a breach of that agreement, and excepting from the contractual indemnity damage, injury to property, or loss that arises from the "sole negligence or willful misconduct" of CBC. (CBC-Willow Contract ¶ 13 quoted at App. p. 4, ll. 1-3, 11-13.) (*See also* Civ. Code § 2782.)

CBC's motion asserts a number of grounds that it contends warrant denial of a good faith settlement determination.

A. <u>Lack of Due Process for Micor and Bay Valley</u>

CBC claims that cross-defendants Micor and Bay Valley have been denied due process because at the time the Application was filed, they had not appeared in the action. CBC, however, had served both Micor and Bay Valley with its cross-complaint before the Application was filed and before CBC filed its motion contesting the Application. (*See* POS on X-Compl. on Micor filed 7/17/2025; POS on X-Compl. on Bay Valley filed 7/30/2025.) CBC acknowledges Bay Valley had been served with the cross-complaint, but its answer was not due until September 23, 2025. (Ginn Decl. ¶

Applicants served their Application on both Micor and Bay Valley. (*See* POS filed 8/12/2025.) Further, though an order granting the Application was entered prematurely and later vacated, before the order was vacated, Applicants also served Micor and Bay Valley with notice of entry of the order granting the Application good faith determination. (*See* Not. of Entry of Order filed 9/8/2025.) CBC served Micor and Bay Valley with the notice that the order had been vacated. (*See* Not. of Entry of Order Vacating Order filed 9/10/2025.) Micor has not appeared, its default has been entered as of August 21, 2025, and though Ginn states in his declaration he had discussed vacating Micor's default before September 8, 2025 when CBC's motion was filed, the default stands and Micor has not appeared. (Ginn Decl. ¶ 11.) Bay Valley has answered the cross-complaint and been served with the supplemental pleadings on the Application and motion but has not attempted to appear on these matters.

Due process is served when a party has been given notice and an opportunity to be heard. (*Singer Co. v. Superior Court* (1986) 179 Cal.App.3d 875, 890.) (See also *Britz v. Dow Chemical Co.* (1999) 73 Cal.App.4th 177, 181 [citing *Singer*, stating due process requires a party be given notice and an opportunity to defend the party's interests]; *Antelope Valley Groundwater Cases* (2021) 62 Cal. App. 5th 992, 1057 [stating due process is a "flexible concept" requiring notice "reasonably calculated to apprise" the interested party of the pendency of the action" affecting the party's property interest and an opportunity to present objections].) The Court in *Singer* held that an "absent" tortfeasor has a financial stake in the fairness of a settlement, that tortfeasor is a likely defendant and has a property interest giving rise to a right to due process regarding the good faith settlement determination. (*Singer, supra,* 179 Cal.App.3d at 890-891.) *Singer* cited by CBC, however, is distinguishable on its facts in that the settlement for which a good faith determination was made occurred before the party seeking indemnity was served as a cross-defendant and before it filed its own cross-complaint for indemnity and contribution. (*Singer, supra,* 179 Cal.App.3d at 882.)

Further, the Court in *Singer* limited concerns regarding due process to a likely defendant with a "significant property right" such that the likely defendant faces the possibility of "substantial liability." (*Id.* at 892 [stating "There may well be circumstances in which a later-joined tortfeasor has such minimal connection to the underlying loss and thus such a limited exposure to liability that his ability to settle will not be impaired by his absence from a good faith hearing pursuant to section 877.6; such a remote tortfeasor need not be deemed a necessary party to the good faith determination."].) The Court in *Singer* held that if a joint tortfeasor is not a party to the action by complaint or cross-complaint when a good faith settlement determination is made regarding a settlement with another joint tortfeasor, the later added joint tortfeasor "has the right to challenge that finding once he has been brought into the litigation." (*Id.* at 881.) *Singer* does not hold that the Court cannot make a good faith settlement determination under Code of Civil Procedure §§ 877 and 877.6 until all potential defendants have appeared in the action; it merely preserves the right of later appearing joint tortfeasors who have a "significant property right" based on potential "substantial liability" to make a later challenge to the good faith settlement determination if the joint tortfeasor was not provided notice and an opportunity for hearing before its property interest was adversely affected.

Here, the "likely defendants" as described in *Singer* had been named and served with the cross-complaint, as well as with the Application and the proposed settlement and related notices. The lack of appearance by Micor and Bay Valley in the action does not preclude the Court from making a good faith determination regarding the settlement under the circumstances and the authorities discussed above. The Court does not need to determine whether Micor or Bay Valley retain any potential right to subsequently contest the Court's good faith determination made on the Application and motion unless and until either of those parties seeks to make such a challenge.

B. CBC's Right to Pursue Express Contractual Indemnity Notwithstanding Good Faith Settlement Determination under Code of Civil Procedure § 877.6

CBC also contests the Application based on Applicants' request that all claims for indemnity by CBC against Willow Creek be deemed barred by the good faith settlement determination, including CBC's claim for express contractual indemnity. CBC has submitted a copy of its subcontract with Willow Creek (Ginn Decl. Exh. D) which includes an express indemnification provision.

In *Bay Development, Ltd. v. Superior Court* (1990) 50 Cal.3d 1012, the California Supreme Court held that a good faith settlement determination under Code of Civil Procedure §§ 877 and 877.6 bars a claim for "implied contractual indemnity," "that is, on the theory that the settling defendant's obligation to indemnify should be inferred from some contractual relationship between the defendants," because "a claim based on an implied contractual indemnity theory is a form of equitable indemnity, and therefore such a claim is barred by a good faith settlement under section 877.6, subdivision (c)." (*Id.* at 1020.) In so holding, the Court distinguished claims for express contractual indemnity and reconfirmed the rule that, "when the settling defendant has previously entered into a contractual agreement to indemnity a nonsettling defendant, a settlement – even if made in good faith -- does not relief the settling defendant from performing the contractual indemnification obligations. [Citation omitted.]" (*Id.* at 1019.)

Applicants argue that because all their claims for "work associated with Willow as a subcontractor are totally resolved" (Appl. p. 5, ll. 7-8), CBC has no right to express indemnity from Willow Creek under its contractual indemnity provision. Applicants argue CBC cannot seek express indemnity from Willow Creek for attorneys' fees and costs "related to work of other unrelated to Willow issues," but the argument does not address CBC's right under its contractual indemnity provision with Willow Creek for indemnity for attorneys' fees and costs it has incurred related to Willow Creek's work or any other claims subject to the express indemnity provision.

The nature and extent of the costs or damages CBC may be able to recover against Willow Creek under its express contractual indemnity provision in the Willow Creek subcontract is beyond the scope of the issues the Court can determine on the Application in making or not making a good faith settlement determination under Code of Civil Procedure §§ 877 and 877.6. Under the applicable case law, uncontroverted by Applicants, such a determination does not extend to bar claims for express contractual indemnity. (*Bay Development, supra,* 50 Cal.3d at 1019; [good faith settlement "would not preclude an indemnity action based on an express indemnity agreement"]; *C. L. Peck Contractors v. Superior Court* (1984) 159 Cal. App. 3d 828, 834 [relying on *E.L. White, Inc. v. City of Huntington Beach* (1978) 21 Cal.3d 497, 506-508, distinguishing between implied indemnity and express contractual indemnity and explaining " ' an express indemnity clause is accorded a certain preemptive effect, displacing any implied rights which might otherwise arise within the scope of its operation' " such that the extent of a party's duty to indemnity another under an express contractual indemnity provision has to be determined under the contract and not based on equitable indemnity principles].) (*See also Willdan v. Sialic Contractors Corp* (2007) 158 Cal. App. 4th 47, 55 fn. 6 ["It is well established a good faith settlement 'would not preclude an indemnity action based on an express indemnity agreement.' [Citations omitted.]"].)

Applicants' supplemental opposition raises the contention that CBC may have been unlicensed when it contracted to for this project. The Court does not make any determination regarding CBC's license status or its impact on CBC's ability to pursue an express contractual indemnity (or other indemnity) claim. It is not clear that Business and Professions Code § 7031 and the authorities cited by Applicants bar an unlicensed contractor's right to either express contractual indemnity or equitable indemnity from another party, or the right to receive a credit for settlement proceeds paid by another party as a nonsettling party pursuant to Code of Civil Procedure § 877(a). (*See UDC-Universal Development, L.P. v. CH2M Hill* (2010) 181 Cal. App. 4th 10, 26 and fn. 5 [affirming judgment for contractor on indemnity cross-complaint, even assuming the contractor's class B license was insufficient for the work on the project, stating " '[C]auses of action that do not seek "the collection of compensation for the performance of any act or contract for which a license is required" are beyond the scope of Business and Professions Code section 7031.' (*Holland v. Morse Diesel Internat., Inc.* (2001) 86 Cal.App.4th 1443, 1451; *see also Davis Co. v. Superior Court, supra,* 1 Cal.App.3d at p. 159 [unlicensed subcontractor's breach of warranty claim against seller of defective materials not within language and purpose of contractor licensing statutes].)"].)

A challenge to the CBC cross-complaint is not before the Court on the Application and motion. The case authority cited above is clear that a good faith settlement determination under Code of Civil Procedure §§ 877 and 877.6 does not bar an express contractual indemnity claim, and that claim by CBC shall be preserved whether or not the Court grants the good faith determination. To the extent the Application seeks an order barring CBC from pursuing any claims against Willow Creek for express contractual indemnity based on the indemnity provision of CBC's subcontract with Willow Creek, the relief is improper and is **denied.** To the extent CBC's motion asks the Court to exclude CBC's express contractual indemnity claims against Willow Creek from any dismissal or bar from prosecution based on a good faith determination under Code of Civil Procedure §§ 877 and 877.6, that aspect of the motion is **granted.**

C. <u>Burden of Proof on Good Faith Settlement Determination</u>

Applicants were not required to address in detail the *Tech-Bilt* factors in their Application; a "barebones" application is sufficient, as the party objecting to the good faith determination bears the burden of proving the settlement does not meet the *Tech-Bilt* good faith standard. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261; *North County Contractor's Assn., supra,* 27 Cal.App.4th at 1090-1091.) (*See also Alcal Roofing & Insulation v. Superior Court* (1992) 8 Cal.App.4th 1121, 1129 ["At a minimum, a party seeking confirmation of a settlement must explain to the Court and to all other parties: who has settled with whom, the dollar amount of each settlement, if any settlement is allocated, how it is allocated between issues and/or parties, what nonmonetary consideration has been included, and how the parties to the settlement value the nonmonetary consideration."].)

"The burden is upon the party objecting to the proposed settlement to prove an absence of good faith. (§ 877.6.) The challenger must prove 'the settlement is so far "out of the ballpark" in relation to these factors as to be inconsistent with the equitable objectives of the statute.' [Citation omitted.]" (*North County Contractor's Assn. v. Touchstone Ins. Services* (1994) 27 Cal. App. 4th 1085, 1091 [quoting *Tech-Bilt, supra,* 38 Cal.3d at 499-500].) (*See also* Code Civ. Proc. § 877.6(d); *Tech-Bilt, supra,* 38 Cal.3d at 499-500 ["The party asserting the lack of good faith, who has the burden of proof on that issue (§ 877.6, subd. (d)), should be permitted to demonstrate, if he can, that the settlement is so far 'out of the ballpark' in relation to these factors as to be inconsistent with the equitable objectives of the statute. Such a demonstration would establish that the proposed settlement was not a 'settlement made in good faith' within the terms of section 877.6."]; *Greshko v. County of Los Angeles* (1987) 194 Cal.App.3d 822, 831 [same].) This assessment is made based on the facts available at the time the settlement is made. (*Tech-Bilt, supra,* 38 Cal. 3d at 499 ["[P]ractical considerations obviously require that the evaluation be made on the basis of information available at the time of settlement."].)

CBC cites *Mattco Forge, Inc. v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, in which the Court did not make a finding of a good faith settlement where the settling party did not offer evidence of its proportionate liability, only questionable assumptions to support that the settlement amount was reasonable. (*Id.* at 1351.) In *Mattco Forge*, the party <u>objecting</u> to the good faith of the settlement presented an expert declaration addressing the settling party's failure to perform in accordance with the standard of care and why the conduct provided a basis for damages against the settling party. (*Id*. at 1345-1346.) In the face of the expert testimony demonstrating why the settlement did not reflect the settling party's potential liability and potential proportionate share of liability for the damages claimed, the party seeking the good faith determination did not present evidence to counter the objecting party's evidence and support that the settlement amount was within the reasonable range of the settling party's proportionate liability. (*Id*. at 1350-1352.) The Court of Appeal held the trial court's good faith determination was therefore not supported by substantial evidence.

Similarly, in *Greshko, supra*, also cited by CBC, the party <u>objecting</u> to the settlement submitted an expert declaration by an engineer regarding the intersection where the motor vehicle accident occurred, the subject of the action, and evidence regarding prior accident reports, as well as evidence from trial testimony by two experts supporting that the intersection was dangerous because of a lack of a left-turn pocket and that the dangerous condition caused the accident. In response to the expert testimony offered by the objecting party, the plaintiffs presented only a declaration by the plaintiffs' counsel explaining the motivations for the settlement and asserting his conclusion that the settling parties had no liability. The Court of Appeal reversed the trial court's order finding the settlement was in good faith, concluding that the order was improperly based on the trial court's acceptance of plaintiffs' counsel's unsupported conclusion of no liability, which was not supported by substantial evidence, and improper rejection of the expert evidence supporting the objections, which was substantial evidence. (*Greshko, supra,* 194 Cal.App.3d at 834-836.)

The Application generally covers the "barebones," minimum requirements for an application for a good faith settlement determination summarized in the *Alcal* decision. There is no allocation of the settlement proceeds made in the settlement, so allocation is not addressed in the Application. The Court considers the deficiencies in evaluating whether CBC has met its burden of proof that a good faith determination should not be granted.

D. <u>*Tech-Bilt* Factors</u>

1. <u>Amount Paid in Settlement</u>

The amount of the settlement payment ($85,000) is clear under the settlement. The settlement indicates that amount should have been paid within 30 days after full execution of the agreement.

The agreement appears to have been fully executed on February 25, 2025. (App. Exh. A.)

2. Financial Condition and Insurance Policy Limits of Settling Defendant

The Applicants have offered some evidence in the Kelly and Shambaugh opposition declarations that CBC's insurer "denied coverage." (Kelly Decl. Exh. 3 and Shambaugh Decl. Exh. A.) The email they rely on for that proposition states that the prior counsel representing CBC would no longer be involved on the "carrier's directive," but does not expressly state any reason. (*Id.*) That CBC's insurance carrier may have denied coverage does not address Willow Creek's insurance coverage. There is also no evidence before the Court of Willow Creek's financial condition and ability to respond to a monetary judgment independent of any insurance coverage. Nevertheless, CBC does not argue that the financial condition of Willow Creek or its insurance coverage is relevant to the good faith determination in this case.

3. Evidence of Collusion Aimed to Injure the Interests of the Nonsettling Defendants

CBC identifies four facts which it contends supports a finding the Willow Creek settlement was collusive. First, it notes that Willow Creek is now being represented by the same counsel as the Plaintiffs. This representation is consistent with the settlement term that obligates Plaintiffs to defend and indemnity Willow Creek from claims related to the Project, including by CBC, though it does raise some questions about potential conflicts under the circumstances.

The fact Applicants filed the Application before two other subcontractors named by CBC as cross-defendants have appeared in the action does not necessarily show collusion either for the reasons addressed above regarding the due process contention. Both Bay Valley and Micor were served with the Application and related notices. The Ginn Declaration filed with CBC's motion on September 8, 2025 indicated that Bay Valley was being served by publication and its answer was due September 23, 2025, after the Application and motion were filed, and that prior to September 8, 2025 when the CBC motion was filed, counsel for CBC had had discussions with Micor's counsel regarding vacating Micor's default which was entered on August 21, 2025. (Ginn Decl. ¶¶ 11, 12.) The Court does not find that the timing of the Application based on the record, including the service of the Application Micor and Bay Valley, indicates some effort to conceal the Application from them or deny them an opportunity to participate in the good faith determination.

Third, CBC points to Plaintiffs' failure to respond to CBC's pending discovery before CBC had to file its motion contesting the application. Any concerns regarding Applicants' timing in filing their Application for good faith settlement determination or postponement of the response date for the discovery, however, has been addressed by the continuance of the original hearing date and allowing the parties for file supplemental briefing as set forth above.

Fourth, CBC points to the terms of the Willow Creek settlement itself. In particular, CBC points to the fact Plaintiffs obligated themselves to indemnify Willow Creek under Willow Creek's express contractual indemnity in favor of CBC, and implicitly, their attempt to have the Court dismiss the express contractual indemnity cause of action despite case law precluding such a dismissal based on a good faith settlement determination. The indemnity provision in the settlement puts Plaintiffs and their counsel in an unusual position of defending the express indemnity cause of action of the cross-complaint for Willow Creek while apparently still alleging and pursuing damages for defective construction for foundation and framing-related work based on the allegations of their Complaint filed after the settlement and their damage summary in their written discovery responses. Nevertheless, the Court does not find the indemnity provision supports an inference of collusion between Plaintiffs and Willow Creek rather than an arms' length settlement. (*See, e.g., Everman v. Superior Court* (1992) 8 Cal.App.4th 466, 470-473.)

4. Approximation of Plaintiff's Total Recovery, Settlor's Proportionate Liability, Allocation of Settlement Proceeds and Settlement in the "Ball Park"

"A necessary corollary to the definition of good faith in *Tech-Bilt* is that the trial court's consideration of the settlement agreement and its relationship to the entire litigation in a contested setting must proceed upon a sufficient evidentiary basis to enable the court to consider and evaluate the various aspects of the settlement. [Citations omitted.] Because *Tech-Bilt* mandates a rough approximation of the settling defendant's proportionate liability and consideration of all other defendants' proportionate liability and consideration of all other factors that might affect the fairness of the settlement as respects nonsettling defendants, the affidavits, declarations or other evidence should provide the court with the facts necessary to evaluate the settlement in terms of the factors contemplated by *Tech-Bilt*. Without the facts, in a contested hearing, it is impossible for a court to exercise its discretion in an appropriate fashion. [Citation omitted.]" (*City of Grand Terrace, supra,* 192 Cal. App. 3d at 1263.)

"A determination as to the good faith of a settlement, within the meaning of section 877.6, necessarily requires the trial court to examine and weigh a number of relevant factors, *one of the most important of which is the settling party's proportionate liability*." (*Mattco Forge, Inc. v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1350 [italics in original].) "If 'there is no substantial evidence to support a critical assumption as to the nature and extent of a settling defendant's liability, *then a determination of good faith based upon such assumption is an abuse of discretion*.' [Citation omitted.]" (*Id.* [italics in original].)

"Under California law, when one of a number of tort defendants enters into a settlement agreement with a plaintiff, the nonsettling defendants' liability to the plaintiff is reduced by the amount of the settlement. (Code Civ. Proc., § 877, subd. (a).)" (*Bay Development, supra,* 50 Cal.3d at 1018.) The statute provides in pertinent part that "[w]here a release . . . is given in good faith before verdict or judgment to one or more of a number of tortfeasors claimed to be liable for the same tort . . . it shall have the following effect: [¶] (a) It shall not discharge any other such party from liability unless its terms so provide, <u>but it shall reduce the claims against the others in the amount stipulated by the release</u>, the dismissal or the covenant, <u>or in the amount of the consideration paid for it, whichever is the greater</u>." (Code Civ. Proc. § 877(a) [emphasis added].)

The language of the *Tech-Bilt* decision refers to the allocation of settlement proceeds among plaintiffs, but subsequent case law applying the factors in that case in the construction defect context, including the cases cited above, hold that this factor also should consider how the settlement amount is allocated to different components of the damages claimed by the plaintiff in cases in a multiparty construction case. (*See Alcal Roofing, supra,* 8 Cal.App.4th 1121, 1122.) CBC argues that the settlement fails to allocate the settlement amount between the framing work and foundation work performed by Willow Creek.

Assessment of Willow Creeks "proportionate liability" as the settling party based on the totality of

Plaintiffs' claim, allocation of the settlement proceeds, and whether the settlement amount is in the "ballpark" of the settling party's potential liability are interrelated for purposes of evaluating the good faith of the settlement. The Willow Creek settlement predated the filing of Plaintiffs' complaint, and despite a release of Willow Creek as the subcontractor who performed framing and foundation work, Plaintiffs continue to assert framing and foundation defects as part of their claim for $172,000 in damages in the Complaint. (Compl. ¶¶ 12, 16.) There is no dollar breakdown of the damage claims in the Complaint.

a. <u>Contesting Party's Evidence</u>

CBC has presented evidence that (a) Plaintiffs continue to assert claims for defective framing in their Complaint despite their pre-litigation settlement that allegedly encompassed all the framing defects; (b) Willow Creek's subcontract included foundation work; (c) Plaintiffs have alleged construction defects related to the foundation in the Complaint; and (d) the Applicants in their initial opposition repeatedly state that the settlement negotiated with Willow Creek took into account and allegedly resolved only construction defects related to framing, and not the defects in the foundation work for which Willow Creek was engaged and performed. (*See* Compl. ¶¶ 12 and 16; Ginn Decl. ¶ 5 and Exh. D; Opp. p. 3, l. 1-2 citing Kelly Decl. Exh. 2; Opp. p. 3, ll. 11-14, p. 5, ll. 1-3, ll. 5-6, and ll. 26-27, and p. 6, ll. 2-4.)

Plaintiffs' discovery responses which include an itemization of damages (roughly $135,000) are addressed at length in the CBC reply. CBC, however, argues that the specific types of damages identified by Plaintiffs in their discovery responses show that approximately 82% of the damages (approximately $110,000) are attributable to work performed by Willow Creek. (Buchanan Reply Decl. Exh. B [Resp. to Form Interrogs. No. 305.3]; C. Begg Decl. ¶ 2.) CBC argues that the settlement amount therefore is less than Willow Creek's proportionate liability, presumably because based on the discovery, Willow Creek may be responsible for approximately 82% of Plaintiffs' total damages. (Buchanan Reply Decl. Exh. B [Resp. to Form Interrogs. No. 305.3]; C. Begg Decl. ¶ 2.) Defendant Begg's calculation that $110,000 in items listed in the interrogatory responses that he states are within the scope of work of Willow Creek under its subcontract, and CBC's reference in its initial opposition to the $172,000 in damages claimed in the Complaint is the only evidence CBC offers to contest the Willow Creek settlement as disproportionate to Willow Creek's potential liability.

b. <u>Plaintiffs' Evidence and Supplemental Argument</u>

Plaintiffs have pointed to the amount Willow Creek was to be paid for its work on the project under its subcontract with CBC, the sum of approximately $140,000 total, as some evidence of the proportionality and the reasonableness of the settlement dollar amount. The amount Willow Creek was paid for its work and does not necessarily reflect the damages Plaintiffs may have sustained from any defective work.

Applicants offer the expert Fragoso whose declaration was filed in support of their opposition. He asserts, "The $85,000 settlement among Blaine Mervin Munsch dba Willow Creek Construction and the Carrillos was <u>an amount commensurate with the framing subcontract price</u> and represented a fair and equitable resolution related to the cost of work performed <u>and cost of work to correct non-conforming aspects of the work</u> of Blaine Mervin Munsch dba Willow Creek Construction." (Fragoso Decl. ¶ 5 [emphasis added].) The reference to "framing subcontract price" makes the expert's declaration ambiguous as to whether the expert considered the cost to correct any defective work by Willow Creek related to the foundation, which now appears to represent the vast majority of the damages Plaintiffs are claiming in the litigation.

The Application represents that "[a]ll of the work associated with Willow as a subcontractor are totally resolved and any claims of the Carrillo's as against CBC related to framing are gone, there is a credit to CBC." (Appl. p. 5, ll. 7-9 [emphasis added].) The statement on one hand indicates "all work" done by Willow Creek is covered by the release of claims in the settlement but then states the Plaintiffs' claims for "framing" are "gone," though Willow Creek's work encompassed both framing and foundation work. The Court asked the parties to address this ambiguity in their supplemental briefs. The Court requested clarification of Applicants' position in their supplemental opposition.

Applicants' supplemental opposition addresses the issue briefly without reference to Willow Creeks' foundation work specifically, stating that "the Settlement and Release agreement clearly identifies a numerical sum paid in consideration for *release of all claims* associated with Willow's scope of work." (Appl. Suppl. Opp. p. 3, ll. 1-3 [italics in original].) They also state, however, that "IF, assuming arguendo, 80+ percent is the actual responsibility of Willow, then per *Tech-Bilt, Inc.,* if the claims of CBC have viability [presumably indemnity claims against Willow Creek], then CBC [and other subs] get a credit for 80+ 'work of Willow' having been settled. . . . [¶] Per *Tech-Bilt, Inc.*, to the extent CBC has a viable cross-claim . . ., it [and other subs] get a credit to reduce the claims against the others in the amount *and all of the work of Willow* stipulated by the release." (Suppl. Opp. p. 3, ll. 8-14 [italics in original, underscoring added].)

While Applicants' supplemental briefing did not address any allocation or clearly explain the references to "framing" in the initial opposition when the subcontract covers foundation as well, they do explain Willow Creek settlement resolves Plaintiffs' right to make claims against Willow Creek for any of its work and that the release covers all of Willow Creek's work on the project. Plaintiffs also acknowledge they cannot obtain a double recovery from both Willow Creek and CBC (or other subcontractors). (*See, e.g.,* Civ. Code § 877(a); *Reed v. Wilson* (1999) 73 Cal. App. 4th 439, 443-444 ["Sections 877 and 877.6 are designed to promote the equitable sharing of costs among the parties at fault, and to encourage settlement. [Citations omitted.] In addition, the offset provided for in section 877 assures that a plaintiff will not be enriched unjustly by a double recovery, collecting part of his total claim from one joint tortfeasor and all of his claim from another. [Citation omitted.]"].) It is not clear that CBC's right to a credit against Plaintiffs' damages from construction defects on the project is dependent on CBC's right to indemnity as stated in Applicants' supplemental opposition, rather than on the law which prevents a double recovery.

c. Court's Assessment of Proportionality and Settlement in the "Ballpark"

The good faith determination under *Tech-Bilt* requires "a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability," meaning the proportionate liability Willow Creek bears based on alleged defects in its work in relation to the total damages claimed by the Plaintiffs. (*Tech-Bilt, supra*, 38 Cal.3d at 499.) "In determining a settling defendant's equitable proportionate share of liability, the judge does not look to the plaintiff's claim for damages; rather the judge tries to determine a 'rough approximation' of what the plaintiff would actually recover if the case should go to trial. [Citation omitted.]" (*Horton v. Superior Court* (1987) 194 Cal. App. 3d 727, 735.) Once that proportionate liability is assessed, then the Court assesses whether the settlement amount is in the "ballpark" of the settlor's proportionate liability. A settlement lacks good faith if the settlement is " 'grossly disproportionate to what a reasonable person at the time of settlement would estimate the settling defendant's liability to be.' [Citation omitted.]" (*Id.*) The Court is also guided by *Tech-Bilt*'s recognition that the good faith statute is ground in equitable policies of encouraging settlement. (*Id.* at 498-499.)

Despite the references in Plaintiffs' Application and opposition to the $85,000 settlement resolving "framing" defects, the effect of the settlement is to bar any direct claim by Plaintiffs against Willow Creek for all of its work. A good faith determination by the Court would also bar equitable indemnity and contribution claims by CBC or the other subcontractors for damages attributable to Willow Creek's defective work, but not CBC's express contractual indemnity rights. While CBC argues there is a lack of allocation of the settlement to components of the damages, there is in effect an allocation in that the Willow Creek settlement effectively precludes claims against Willow Creek for the framing and foundation work within the scope of its subcontract, other than the express contractual indemnity claim.

Accepting CBC's evidence of the $110,000 in damages itemized by Plaintiffs in their discovery responses as attributable to Willow Creek's scope of work, CBC argues Willow Creek's proportionate liability is 82% of the damages Plaintiffs have identified to date. If the $110,000 is measured against the $172,000 in damages alleged in the Complaint, the percentage is lower, roughly 64%. The $85,000 settlement amount paid by Willow Creek is roughly 49% of the total damages alleged in the Complaint, and roughly 63% of the total damages itemized in Plaintiffs' interrogatory responses. It is also approximately 77% of the $110,000 in damages attributed to Willow Creek's scope of work in Plaintiffs' damages itemized in their discovery responses.

Under any of these approximations, the settlement amount of $85,000 by the framing and foundation subcontractor does not seem to be so far out of the "ball park" as to not be considered a good faith settlement. The cases cited by CBC regarding the requirement for allocation of settlement proceeds to components of damages in a multi-party construction defect case arise in a distinguishable factual context. In both *Alcal Roofing* and *L.C. Rudd & Son,* the settling parties were the general contractor or developers, the party with liability for the project defects as a whole, and the objecting party was a subcontractor who objected to the allocation of the proceeds as the subcontractors contended the allocation was grossly disproportionate to the subcontractor's potential liability for the construction defects. (*See Alcal Roofing* 8 Cal.App.4th at 1122 [reversing trial court order approving good faith settlement with developer and subcontractors which allocated only $100,000 of a $4.4 million dollar settlement to roofing issues and where the nonsettling roofer was left exposed to a $2 million claim for roofing defects but would have received only a $100,000 offset for those defects]; *L.C. Rudd & Son v. Superior Court* (1997) 52 Cal.App.4th 742, 750-753 [reversing order finding plaintiff's settlement with developers to be in good faith based on the parties' allocation of a small portion of the cash settlement as a credit ($15,000) to nonsettling parties, despite the fact the special master estimated the soils and foundation issues represented between 55 and 61 percent of the total cost of repair, such that the allocation should have been at least $41,250 of the $75,000 cash settlement].)

It is not clear to the Court that a settlement by the owner with one subcontractor that is not allocated to the specific components of that subcontractor's work is subject to the same allocation concerns as a settlement by the general contractor and developer that resolves the general contractor's or developer's overall liability for construction defects on the project, particularly in this case where CBC's express contractual indemnity rights are retained. CBC has not cited cases addressing this circumstance, in which a court has held a good faith settlement determination should be denied on an objection by a general contractor for lack of allocation of the subcontractor's settlement.

The *Tech-Bilt* decision expressly recognizes that a party who settles should pay less in settlement than the party's potential liability if the case were litigated through trial. CBC has not demonstrated that the $85,000 paid in settlement by Willow Creek, representing somewhere between 49% and 63% of the total damages claimed by Plaintiffs, is "grossly disproportionate" to a reasonable estimate of Willow Creek's potential liability at the time of the settlement, which was made prior to the commencement of litigation. It was CBC's burden to prove the settlement is "grossly disproportionate" and so far out of the ballpark that the good faith determination should be denied, and the Court does not fine CBC has met that burden. Further, despite the settlement, CBC retains its express contractual indemnity claims against Willow Creek.

The Court finds that the Willow Creek settlement is a good faith settlement.

12. 9:00 AM CASE NUMBER: C25-01418
CASE NAME: LAUREL EVANS VS. ABE WORTMAN
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: NUNEZ, CAITLIN CAPPA
TENTATIVE RULING:

Defendant Caitlin Cappa Nunez (“Defendant”) brings the instant demurrer to the complaint of plaintiff Laurel Evans (“Plaintiff”). Defendant argues that that Plaintiff has failed to plead sufficient facts to support any of their causes of action against Defendant. (Notice of Demurrer, p. 2.) Defendant asks the Court to sustain their demurrer without leave to amend, or, in the alternative, compel arbitration and stay this action pending the arbitration proceedings. (Demurrer MPA, p. 17.)

For the reasons discussed below, the Court declines to rule on the request for arbitration and sustains Defendant’s demurrer to the second (fraud), third (negligent misrepresentation), and seventh (UCL) causes of action, with leave to amend. The Court overrules Defendant’s demurrer with respect to the fifth and sixth causes of action for declaratory relief, and with respect to Defendant’s arguments relating to alter ego and the economic loss rule. Plaintiff may file and serve an amended complaint within 10 days of entry of this order. (Code Civ. Proc., §472b; California Rules of Court, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Jason S. Takenouchi Decl., ¶¶ 1-5; Code Civ Proc., § 430.41.)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39

Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc*. (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc*. (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Background

Plaintiff and defendant Proyecto, a general contractor, entered into two contracts for Proyecto to perform work at Plaintiff's real property. (Complaint, ¶¶ 8, 9.) Plaintiff paid Proyecto ~$134,000, but Proyecto failed to pay several subcontractors, leading to at least one subcontractor filing a lien against Plaintiff's property. (*Id*. at ¶¶ 10-11.) Additionally, Proyecto did not complete the work that it was to perform in relation to the contracts. (*Id*. at ¶ 12.)

On May 5, 2025, Plaintiff filed the operative complaint in this matter, which alleges claims against Defendant for fraud; negligent misrepresentation; declaratory relief, violations of Business and Professions Code section 17200, and asserts alter ego allegations in relation to Defendant and defendant Proyecto.

Discussion

Defective Notice and Petition to Compel Arbitration

Code of Civil Procedure § 1010, provides that "Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based." California Rules of Court, rule 3.1110, subdivision (a), provides that "A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order." Here, Defendant's notice, outside the caption and footers, is silent as to arbitration and only provides notice that Defendant is seeking to demurrer. (Notice of Demurrer, p. 2.) The notice neither identifies the grounds upon which Defendant is seeking to compel arbitration, nor the papers upon which Defendant will base its claim. (*Ibid*.) Further, California Rules of Court, rule 3.1330, provides that "A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference." Here, Defendant has not complied with this requirement.

Defendant has not properly noticed its intent to compel arbitration, and this issue is not properly before the Court at this time. The Court will disregard this issue in its instant analysis without prejudice to Defendant subsequently bringing a petition to compel arbitration that complies with the requisite legal requirements.

Alter Ego

Defendant argues that Plaintiff has not pleaded sufficient facts to satisfy the standard for pleading an alter ego theory between Defendant and Proyecto. (Demurrer MPA, p. 9; Reply, pp. 3-5.) "[T]he complaint fails to allege any specific instances of Cappa Nunez's supposed misrepresentations or misuse [of] funds as a Proyecto employee during the performance of the contract." (Reply, pp. 3-4.)

Plaintiff cites *Besser v. Walsh* (1990) 222 Cal.App.3d 619, 624, for the proposition that this issue is a fact intensive inquiry and "not readily susceptible to determination on demurrer," and cites two cases for the proposition that conclusory allegations are sufficient to survive demurrer if they give notice of the theory of liability. (*Doe v. Unocal Corp*. (2000) 27 Cal.4th 1099, 1109; *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 415.) The Court has reviewed *Unocal* and *Cooper* and notes that the citation to *Unocal* appears to be incorrect and that *Cooper* does not appear to stand for the stated proposition.

However, in *Rutherford Holdings LLC v Plaza Del Rey* (2014) 223 Cal.App.4th 221, the court held that a plaintiff sufficiently to alleged alter-ego by asserting that "Caswell dominated and controlled PDR; that a unity of interest and ownership existed between Caswell and PDR; that PDR was a mere shell and conduit for Caswell's affairs; that PDR was inadequately capitalized; that PDR failed to abide by the formalities of corporate existence; that Caswell used PDR assets as her own; and that recognizing the separate existence of PDR would promote injustice." (*Id*. at p. 235.) Here, Plaintiff pleads that Defendant exercised complete control of Proyecto (Complaint, ¶ 61), "there is a unity of interest and ownership between the corporation and the individuals that the separate personalities no longer exist" (*id*. at ¶ 64), "that PROYECTO was inadequately capitalized, failed to observe corporate formalities, and was used as a mere shell, instrumentality, or conduit by Wortman and Nunez to perpetrate a fraud, circumvent legal obligations, or otherwise accomplish an inequitable result" (*id*. at ¶ 62), that "funds paid by Plaintiff for subcontractor labor and materials were diverted or misappropriated by the individual defendants for purposes other than those contractually required or legally permitted" (*id*. at ¶ 63), and that "[a]dherence to the fiction of PROYECTO's separate corporate existence would promote injustice, sanction fraud, and allow Defendants to avoid liability for their wrongful conduct." (*Id*. at ¶ 65.) The Court finds that Plaintiff's allegations are sufficiently on track with the allegations in *Rutherford*, which the court of appeal approved as properly pleading an alter ego theory.

Contrary to Defendant's argument that Plaintiff failed to allege certain "specific instances" of Defendant's conduct, this is not required. As stated in Rutherford, "Defendants argue that Rutherford failed to allege specific facts to support an alter ego theory, but Rutherford was required to allege only 'ultimate rather than evidentiary facts.' [Citation] Moreover, the 'less particularity [of pleading] is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff,' which certainly is the case here. [Citation.]" (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 236.)

The Court overrules Defendant's demurrer to with respect to its arguments relating to Plaintiff's alter ego allegations.

Economic Loss Rule

Defendant argues that Plaintiff's tort claims are barred by the economic loss rule because the tort claims arise from and are not independent of the underlying contract claims. (Demurrer MPA, pp. 10-11; Reply, p. 7.) Plaintiff argues that they allege more than a mere failure to perform contractual obligations, and that their claims for reflect intentional misrepresentations and fraudulent inducement, which have been held to not be barred by the economic loss rule by California courts when they are based on conduct that breaches a duty independent of the contract. (Opposition, pp. 3-5.)

It is true that fraud and intentional misrepresentations that are independent of a party's breach of contract are actionable and not barred by the economic loss rule. (*Robinson Helicopter Co., Inc. v. Dana Corp*. (2004) 34 Cal.4th 979, 991 ["We hold the economic loss rule does not bar Robinson's fraud and intentional misrepresentation claims because they were independent of Dana's breach of contract. [Citation.] Because Dana's affirmative intentional misrepresentations of fact (i.e., the issuance of the false certificates of conformance) are dispositive fraudulent conduct related to the performance of the contract, we need not address the issue of whether Dana's intentional concealment constitutes an independent tort."].)

Here, Plaintiff's fraud allegations are based on sufficiently unique facts to take them outside the scope of a simple breach of contract. (Complaint, ¶¶ 24-36.) The Court overrules Defendant's demurrer based on the economic loss rule.

Sufficiency of Fraud Allegations

Defendant argues that Plaintiff's fraud and negligent misrepresentation claims are not pleaded with the requisite specificity. (Demurrer MPA, pp. 11-12; Reply, p. 6.) Plaintiff takes the position that their fraud and negligent misrepresentation claims are pled with sufficient particularity, and argue that this requirement is relaxed when the facts lie more in the knowledge of the opposite party, which they assert is applicable here. (Opposition, pp. 5-7.)

Generally, fraud must be pled with particularity. (*Hills Transportation Co. v. Southwest Forest Ind., Inc*. (1968) 266 Cal.App.2d 702, 707.) With regard to fraud claims, pleadings must allege facts as to "'how, when, where, to whom, and by what means the representations were tendered.'" (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) "The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (*Tarmann v. State Farm Mut. Auto. Ins. Co*. (1991) 2 Cal.App.4th 153, 157.) The elements of negligent misrepresentation must be alleged with same level of particularity that is required to state a claim for intentional misrepresentation. (See *Small v. Fritz Companies, Inc*. (2003) 30 Cal.4th 167, 173–174.)

Here, Plaintiff has not pled their fraud and negligent misrepresentation claims with the required level of specificity because they do not allege the how, the when, the means the representations were tendered, or the name of the person who made the representation, their authority to speak, to whom they spoke, etc. The Court sustains Defendant's demurrer to Plaintiff's second (fraud) and third (negligent misrepresentation) causes of action against Defendant, with leave to amend.

UCL

Defendant argues that Plaintiff has not properly pled a claim for violation of Business and Professions Code § 17200 because they do not plead what specific laws were violated, they make only generalized and conclusory allegations that Defendant's conduct was unfair, and they did not plead any fraudulent scheme with the proper specificity. (Demurrer MPA, pp. 12-14; Reply, p. 7.) Plaintiff asserts that they properly pled this claim because they pled a variety of unlawful conduct and that this conduct was also unfair because it offends public policy, is immoral, unethical, oppressive, and unscrupulous. (Opposition, pp. 7-9.) Also, Plaintiff asserts that its fraud-based claim is sufficient because all they need to plead is that the alleged conduct is likely to deceive the public. (*Id*. at p. 8.)

The Court notes that "[a] plaintiff alleging unfair business practices [under the UCL] must state with reasonable particularity the facts supporting the statutory elements of the violation." (*Khoury v. Maly's of Cal*. *Inc*., 14 Cal.App.4th 612, 617 (1993). Here, Plaintiff's complaint only provides generalized and conclusory allegations regarding the conduct asserted to satisfy the unfair, unlawful, and fraudulent prongs of this legal theory. (Complaint, ¶¶ 55-57.) The Court sustains Defendant's demurrer to the seventh cause of action, with leave to amend.

Declaratory Relief

Defendant argues that there is no basis for declaratory relief because Plaintiff pleads breach of contract claims that, if proven, would provide an adequate legal remedy, making this claim redundant. (Demurrer MPA, p. 14; Reply, p. 7.) Plaintiff argues that they properly pled an actual controversy, as the law requires, and that declaratory relief claims should be liberally construed. (Opposition, pp. 9-10.)

Defendant relies on *Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, for its position. The court in *Jolley*, stated, "The undisputed facts show that loan modification negotiations did not result in a written instrument or contract under which the parties' rights need to be declared. While there may be a controversy about past conduct, we see no reason why money damages would not be an adequate remedy. [Citation.] Moreover, this cause of action is redundant of Jolley's other claims, and declaratory relief may be denied 'where its declaration or determination is not necessary or proper at the time under all the circumstances.' [Citation.] Where, as here, Jolley has a fully matured cause of action for money, he must seek damages, and not pursue a declaratory relief claim." (*Id*. at pp. 909-910.)

Here, in contrast to *Jolley*, there are two written instruments in which the remaining rights and obligations could still be declared, as the performance was not completed as to either contract. (Complaint, ¶¶ 8-15, 43-46.) The Court declines to sustain Defendant's demurrer as to Plaintiff's cause of action for declaratory relief.

Ruling

The Court sustains Defendant's demurrer to the second (fraud), third (negligent misrepresentation), and seventh (UCL) causes of action, with leave to amend. The Court overrules Defendant's demurrer with respect to the fifth and sixth causes of action for declaratory relief, and with respect to

Defendant's arguments relating to alter ego and the economic loss rule. Plaintiff may file and serve an amended complaint within 10 days of entry of this order. (Code Civ. Proc., §472b; California Rules of Court, rule 3.1320(g).)

As stated above, the Court has disregarded the petition to compel arbitration that was not properly brought with the instant demurrer, without prejudice to Defendant subsequently bringing a petition to compel arbitration that complies with the requisite legal requirements.

13. 9:00 AM CASE NUMBER: C25-02400
CASE NAME: JOVANATHAN CLARK VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Introduction

Before the Court is Defendant City of Richmond, Richmond Police Department, and Sergeant Savannah Stewart (collectively, "Defendants")'s Demurrer. The Demurrer relates to Plaintiff Jovanathan Clark ("Plaintiff")'s Complaint filed on August 21, 2025, for (1) False Arrest/False Imprisonment (Complaint, ¶¶ 19-22); (2) Defamation (Complaint, ¶¶ 23-26); (3) Negligent Infliction of Emotional Distress (Complaint, ¶¶ 27-30); and (4) Intentional Infliction of Emotional Distress (Complaint, ¶¶ 31-34). Plaintiff also asserted a claim for Negligent Investigation (Gov. Code §§ 815.2, 820) against the City and the Police Department. (Complaint, ¶¶ 35-38.).

Defendants demur to Plaintiff's Complaint on several grounds including failure to comply with the mandatory claim presentation requirements of the Government Claims Act, improper naming of a non-existent legal entity, sovereign immunity, and failure to allege a statutory basis for liability.

For the following reasons, **the Demurrer is sustained in its entirety with leave to amend and the Richmond Police Department is stricken as a defendant.**

Meet and Confer Requirement

Defendants satisfied their meet and confer requirement regarding their demurrer in detailing their efforts in reaching out to Plaintiff's counsel by email and telephone. (Gilbert Decl. at ¶ 3.) However, the parties were unable to reach an agreement. (Gilbert Decl. at ¶ 3.)

Request for Judicial Notice

Defendants request the Court take judicial notice of three documents: Exhibit A, the Declaration of City of Richmond Deputy City Clerk Pamela Christian; Exhibit B, a letter from Contra Costa County Risk Management Department to Dylan Hackett, Plaintiff's attorney, concerning the Government Code claim he submitted, dated June 17, 2025; and Exhibit C, Notice to Claimant sent to Plaintiff's attorney, Dylan Hackett, from the Board of Supervisors for Contra Costa County, concerning Plaintiff's Government Code claim to the County, dated July 8, 2025.

Defendants rely on *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363 and *Fowler v. Howell* (1996) 42 Cal.App.4th 1746 in support of judicial notice of these records.

In *Fowler*, the trial court and the Second District Court of Appeal both took notice of a declaration of a state employee familiar with the records of the Board of Control who searched and concluded that the records of the State Board of Control did not contain a claim filed by Petitioner. (*Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1752-1753; citing Evid. Code §§ 452(c), 459.) In *Gong*, the Court noted, "[i]f a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity's records do not show compliance." (*Gong, supra,* 226 Cal.App.4th at p. 376.)

Accordingly, the Court takes judicial notice of Exhibit A. While Plaintiff argues the judicially noticed materials do not conclusively negate compliance (Opp. at 3:7), that is not the case. Under *Fowler* and *Gong*, the Court may take judicial notice that the public records from Defendant City of Richmond do not contain a claim from Plaintiff.

Exhibits B and C are both official documents and records of a state agency, because both documents are communications from Contra Costa County to Plaintiff regarding the claim he submitted to the County.

In sum, the Declaration of City Clerk Pamela Christian, the letter from Contra Costa County's Risk Management Department, and the Notice to Claimant from the Contra Costa County Board of Supervisors are properly subject to judicial notice pursuant to Evidence Code section 452, subdivisions (b), (c) and (h), and section 453, which provide that courts may take judicial notice of a public agency's regulations and official documents. (*In re McDonnell's Adoption* (1947) 77 Cal.App.2d 805, 808; *Clark v. Patterson* (1977) 68 Cal.App.3d 329, 334, n. 5; *Longshore v. Ventura County* (1979) 25 Cal.3d. 14, 24-25 [finding that it is appropriate to take judicial notice of county salary ordinances].) Moreover, in accordance with Evidence Code section 452, subdivisions (b), (c) and (h), and Evidence Code section 453, courts routinely take judicial notice of the official records of State agencies. (*Citizens for Jobs and the Economy v. County of Orange* (2002) 94 Cal.App.4th 1311; *Arce v. Kaiser Foundation Health Plan, Inc*. (2010) 181 Cal.App.4th 471.)

Based on the reasoning above, the court takes judicial notice of Defendant's Exhibits A-C.

Brief Factual Background

The Complaint alleges the following facts: Plaintiff spent the evening of February 22, 2025, with a friend which included going out and drinking alcohol before returning to Plaintiff's home to engage in further "consensual conduct." (Complaint, ¶ 9.) Plaintiff and the friend went to sleep around 4:30 a.m. on February 23, 2025. (*Id*., ¶ 10.) Later that morning, Plaintiff woke up and discovered that the person was unresponsive. (*Id*., ¶ 11.) Plaintiff contacted emergency services, and officers from the Richmond Police Department responded to the home. (*Id*., ¶ 12.) Plaintiff was arrested for rape, taken to jail, interrogated, and processed. (*Id*., ¶¶ 13, 14.) During and after the arrest, officers, including Defendant Sgt. Stewart, canvassed Plaintiff's neighborhood, asked his neighbors about Plaintiff's character, and "insinuated wrongdoing." (*Id*., ¶ 15.) Plaintiff was ultimately not charged with a crime. (*Id*.)

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc*. (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id*. at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

To state a cause of action against a public entity, "the general rule that statutory causes of action must be pleaded with particularity is applicable. Every fact essential to the existence of statutory liability must be pleaded." (*Richardson-Tunnell v. School Ins. Program* (2007) 157 Cal.App.4th 1056, 1061.) Plaintiff's counsel must specifically identify the grounds for statutory liability against a public entity, including citing the statute. (*Searcy v Hemet Unified Sch. Dist.* (1986) 177 CA3d 792, 802 [child injured by automobile near school only alleged "enactments" in complaint].) A plaintiff must also allege facts to show that the "cause of action lies outside the breadth of any applicable statutory immunity." (*Soliz v. Williams* (1999) 74 Cal.App.4th 577, 585.) However, these rules do not deprive the plaintiff of the benefit of the general principle that the courts should liberally construe a complaint and generously allow amendments to cure deficiencies. (*Nestle v City of Santa Monica* (1972) 6 Cal.3d 920; *Keyes v Santa Clara Valley Water Dist.* (1982) 128 Cal.App.3d 882, 885.)

Applicable Law

As explained by the Supreme Court, "the intent of the [Government Claims Act] is not to expand the rights of plaintiffs in suits against government entities, but to confine potential governmental liability to rigidly delineated circumstances: immunity is waived only if the various requirements of the Act are satisfied." (*Williams v. Horvath* (1976) 16 Cal.3d 834, 838.) Sovereign immunity is the rule in California. (*Sonoma Ag Art v. Dept. of Food & Agriculture* (2004) 125 Cal.App.4th 122, 125.) The Government Claims Act "permits private tort actions against government entities and [their] employees where permitted by statute, but otherwise [the entity] retains the general concept of immunity…." (*DeJung v. Superior Court* (2008) 169 Cal.App.4th 533, 543.)

Government Code § 815 establishes the general rule of limiting liability of a public entity based on its own conduct as follows, "Except as otherwise provided by statute [¶] (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Gov. Code § 815(a).) Thus, direct liability for common law claims is not permissible against a public entity. (*See, e.g., Tolan v. State of California ex rel. Dept. of Transportation* (1979) 100 Cal.App.3d 980, 986; *Van Kempen v. Hayward Area Park, etc., Dist.* (1972) 23 Cal.App.3d 822, 825.) Moreover, the Court of Appeal has explained, "a public entity's duty of care is only that specifically provided by statute." (*Tolan*, 100 Cal.App.3d at p. 986.)

Analysis

Government Claims Act Requirement of Timely Presentation of Claim

As a condition precedent to a suit against a public entity, the Government Claims Act requires the timely presentation of a written claim for money or damages. (Gov. Code §§ 911.2, 945.4, 950.2.) The failure to present a timely claim bars the plaintiff from bringing suit. (*Phillips v. Desert Hospital District* (1989) 49 Cal.3d 699, 708; *Abelleira v. District Court of Appeal* (1941) 17 Cal.2d 280, 293; *Torres v. County of Los Angeles* (1989) 209 Cal.App.3d 325, 337.) The claim must be presented no later than six months after the accrual of the cause of action. (Gov. Code § 912.2(a).)

Likewise, Government Code section 950.2 states that any cause of action which is barred against the employing public entity is barred against the public employee. "It is settled that the filing of a timely claim against the employing public entity is a condition precedent to a tort action against either the public entity or the employee. (Citations.)" (*Mazzola v. Feinstein* (1984) 154 Cal.App.3d 305, 310; Gov. Code § 915(c)(1).)

A plaintiff's compliance with the Government Claims Act is an element of the cause of action and must be pled and proved. (*DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983, 990.) Because compliance is an essential element of a damages cause of action, a plaintiff must allege facts showing compliance, or an excuse from compliance, or the complaint will be subject to general demurrer for failure to state a cause of action. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239; *Ovando v. County of Los Angeles* (2008) 159 Cal.App.4th 42, 65.) The reason that facts must be pled is because the failure to comply with the Government Claims Act is "fatal to the plaintiff's legal action [requires that such a claim] must be dismissed." (*Tietz v. Los Angeles Unified School Dist*. (1965) 238 Cal.App.2d 905, 911.)

It is also "well-settled" that plaintiffs must comply with the Claims Act even where the public entity has actual knowledge of the claim. (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 455.) Such knowledge constitutes "neither substantial compliance nor basis for estoppel." (*Id*. [citing cases].) Though this is a Demurrer, a public entity may, through judicial notice of its own records, demonstrate noncompliance with the Claims Act. (*Gong*, supra, 226 Cal.App.4th at p. 376 ["…the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity's records do not show compliance."]; *Fowler*, supra, 42 Cal.App.4th at p. 1752 ["The trial court also took judicial notice that the records of the State Board of Control do not contain a claim filed by Fowler concerning Howell's allegedly false accusations…We likewise take judicial notice of these records."].)

Demonstrating compliance with the Claims Act is a condition precedent to maintaining a cause of action, and, thus, an essential element of Plaintiff's claims against Defendants. (*State of California v. Superior Court, supra,* 32 Cal.4th at 1240.) Therefore, when the judicially noticed facts show that Plaintiff did not comply with the Claims Act, the Court should sustain a demurrer. (*Id*.; *Castro v. Sacramento County Fire Protection Dist*. (1996) 47 Cal.App.4th 927, 933-934.)

Defendants contend that Plaintiff's allegation of submission of a claim to the City of Richmond is contradicted by the judicially noticeable facts that the City's records show no sign of a claim submitted by Plaintiff, and that Plaintiff mistakenly submitted a claim to Contra Costa County instead of to the City of Richmond. (Demurrer at p. 12: 5-12.)

Here, Plaintiff alleges that he complied with the Government Claims Act by submitting a claim to the City, which was rejected. (Complaint, ¶ 7.) However, the Court has taken judicial notice that the City does not have any record of receiving a claim from Plaintiff or from anyone on Plaintiff's behalf. (RJN, Ex. A.) Instead, the judicially noticeable documents suggest that Plaintiff sent his claim to Contra Costa County. (RJN, Ex. B.) On June 17, 2025, the Risk Management Department for Contra Costa County sent a letter to Plaintiff's attorney acknowledging that it had received Plaintiff's claim form; informing Plaintiff's attorney that the claim concerned an arrest and investigation by the City of Richmond Police Department; notifying Plaintiff's attorney that the City is a separate legal entity from Contra Costa County; and concluding that Contra Costa County was "not the appropriate entity against which to assert your claim." (*Id*.) The letter informed Plaintiff's attorney to expect a formal response from the Board of Supervisors after their review on July 8, 2025. (*Id*.) Thus, on July 8, 2025, the Board of Supervisors for Contra Costa County sent a document to Plaintiff's counsel entitled Notice to Claimant that stated, "This claim appears to concern an entity other than Contra Costa County." (RJN, Ex. C.) It is uncontroverted that Plaintiff sent his government claim presentation to

Contra Costa County and not to the City of Richmond.

In response, Plaintiff argues that the Complaint can be amended to allege substantial compliance to plead transmission of Plaintiff's government claim to Conta Costa County to the City of Richmond amongst other possibilities to satisfy substantial compliance. (Opp pp. 5-7.The Plaintiff asserts several hypothetical possibilities: "that a written claim was timely delivered to the a City office or official other than the Clerk's office, or that notice was somehow transmitted to the City from the County, or that the City received written notice that, under the 'claims as presented' doctrine triggered a duty to give notice of any defect but failed to do so. Without passing on these possibilities, the Court notes that the assertion of these hypothetical situations in the opposition papers is insufficient to preclude the sustaining of the demurrer.

Statutory Basis Needed for Claims Against A Public Entity or Public Employee

Even assuming *arguendo* that Plaintiff had adequately alleged that he complied with the Government Claims Act, several of his individual claims fail to allege a predicate statutory basis for liability.

"[I]n California, all government tort liability is dependent on the existence of an authorizing statute or 'enactment' [citations omitted], and to state a cause of action every fact essential to the existence of a statutory liability must be pleaded with particularity, including the existence of a statutory duty. [Citations omitted.] Duty cannot be alleged by simply stating, 'defendant had a duty under the law'; that is a conclusion of law, not an allegation of fact. The facts showing the existence of the claimed duty must be alleged." (*Searcy v. Hemet Unified School Dist*. (1986) 177 Cal.App.3d 792, 802, citing *Susman v. City of Los Angeles* (1969) 269 Cal.App.2d 803, 808.)

Here, Plaintiff has failed to allege any statutory basis for liability in his cause of action for (1) false arrest / false imprisonment, (2) defamation, and (4) intentional infliction of emotional distress. These claims fail for this additional reason.

Negligence/Duty to Investigate Claims

Both the third cause of action for Negligent Infliction of Emotional Distress and the fifth cause of action for Negligent Investigation are both premised on an asserted duty of care of police investigation. (Complaint ¶¶ 27-30; 35-38.)

Defendants argue that there is no right to police services, including a specific type of police response or investigation. (Gov. Code §845 ["Neither a public entity nor a public employee is liable for failure to establish a police department or otherwise to provide police protection service or, if police protection service is provided, for failure to provide sufficient police protection service."]; *Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183.) The U.S. Supreme Court also has stated that there is no constitutional right to a governmental investigation or a particular type of investigation. (*DeShaney v. Winnebago Cnty*. (1989) 489 U.S. 189, 195-196.)

There is no statutory duty identified, nor does Plaintiff allege a duty based on a preexisting relationship for either the third or fifth cause of action which are both based in negligence. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1076; *Winkelman v. City of Sunnyvale* (1976) 59 Cal.App.3d 509 [where no special relationship existed between motorist and police officers who investigated accident in which she was involved, officers had no duty to exercise due care in investigating accident].) Plaintiff does not cite any legal authority that either the third or fifth cause of action can be amended with relevant statutory authority for government duty. (Opp. at p. 8: 4-27.) As this is the first challenge to the Complaint, the Court sustains the Demurrer with leave to amend a statutory basis for Defendants' liability.

Richmond Police Department is Not a Proper Party

Finally, Plaintiff asserts all his causes of action against both the City and the Richmond Police Department. (Complaint, ¶¶ 19-38.)

Defendants take the position that Plaintiff has sued a non-existent legal entity because the Richmond Police Department is not a statutorily recognized public entity that is subject to suit and no cause of action can lie against a party who does not have the legal capacity to be sued. (Demurrer at p. 17: 2-3.) Furthermore, Defendants argue that Plaintiff's claims against both the City and the Richmond Police Department are redundant as they rest on identical theories of liability. (Demurrer at p. 17: 3-4.)

Plaintiff's opposition essentially concedes this point stating that he "does not oppose narrowing the caption to reflect the City of Richmond as the proper municipal defendant, with the understanding that all references to the Richmond Police Department are treated as references to the City and its police department as a subdivision." (Opp. at p. 10: 5-12.)

Because the Richmond Police Department is not a proper party, and because the Plaintiff does not materially object to their dismissal, the Court su*a sponte* strikes the Richmond Police Department as a defendant. (Code Civ. Proc, § 435-37 [the trial court is within its authority to bring a motion to strike sua sponte, i.e., "at any time in its discretion, and upon terms it deems proper."]; see also *Lodi v. Lodi* (1985) 173 Cal.App.3d 628, 631 [upholding trial court order striking and dismissing a complaint entirely on the trial court's own motion].)

Conclusion

For the reasons explained above, **the Demurrer is sustained in its entirety with leave to amend and the Richmond Police Department is stricken as a defendant.**

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-00152
CASE NAME: DEANDRANAE JONES VS. DAVE & BUSTER'S OF CALIFORNIA, INC.
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DISCOVERY RESPONSES**
FILED BY: DAVE & BUSTER'S OF CALIFORNIA, INC.
****TENTATIVE RULING****

The Court is missing the Declaration of Breana Burgos, which is described in the moving papers and does not seem to be in Odessey. The proof of service reflects it was served on Plaintiff. The court requests a copy to be filed with a courtesy copy emailed to the department.
The hearing will be moved to next Friday, February 20, 2026 at 9:00 a.m.

Law & Motion
Add On

15. 9:00 AM CASE NUMBER: C24-02654
CASE NAME: MIU FONG VS. ANGELA LEUNG
***HEARING ON MOTION IN RE: FOR ORDER TO PERMIT SERVICE OF DEFTS ANGELA KIT-HING LEUNG AND SAMUEL NG BY PUBLICATION**
****TENTATIVE RULING****

Plaintiffs seek an order to permit service of defendants by publication. The motion is denied.

Plaintiffs declare that the persons to be served have a private mailbox at a commercial mail receiving agency (CMRA).

Section 17528.5(d)(1) of the Business & Professions Code provides:

> Every person receiving private mailbox receiving service from a CMRA in this state shall be required to sign an agreement, along with a USPS Form 1583, which **authorizes the CMRA owner or operator to act as agent for service of process** for the mail receiving service customer. **Every CMRA owner or operator shall be required to accept service of process for and on behalf of any of their mail receiving service customers,** and for two years after termination of any mail receiving service customer agreement. Upon receipt of any process for any mailbox service customer, the CMRA owner or operator shall (A) within 48 hours after receipt of any process, place a copy of the documents or a notice that the documents were received into the customer's mailbox or other place where the customer usually receives his or her mail, unless the mail receiving service for the customer was previously terminated, and (B) within five days after receipt, send all documents by first-class mail, to the last known home or personal address of the mail receiving service customer. The CMRA shall obtain a certificate of mailing in connection with the mailing of the documents. Service of process upon the mail receiving service customer shall then be deemed perfected 10 days after the date of mailing.
>
> If the CMRA owner or operator has complied with the foregoing requirements and provides to any party participating in a lawsuit involving a mail receiving service customer a declaration of service by mail, given under penalty of perjury along with a certificate of mailing, the CMRA owner or operator shall have no further liability in connection with acting as agent for service of process for its mail receiving service customer.

Plaintiffs have a method of serving the defendants other than publication and the request for publication is denied.